

India Post Payments Bank



Request for Proposal (RFP)

for

**Selection of service provider for Supply,
Implementation, Customization of Software
Solution to integrate with NCCR Portal for Realtime
Reporting for India Post Payments bank**

Nov 18, 2025

Invitation for Request for Proposal (RFP)

IPPB invites proposals from reputed Service Provider/ OEM Partner for Supply, Implementation, Customization of Software Solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank. This RFP may be downloaded by the bidders free of cost from the GEM Portal (www.gem.gov.in) All the documents and process related information are also published on the IPPB Website (www.ippbonline.com).

RFP Summary Sheet

Name of the company	India Post Payments Bank Limited
Bid reference no	GEM/2025/B/6903086
EMD Amount (Refundable)	NIL
Account number for Depositing EMD / PBG	Name: India Post Payments Bank Limited A/c No.: 36071473569 IFSC: SBIN0000691 Bank: State Bank of India, Parliament Street, New Delhi
Date of issue of the RFP	As published in GEM bid document
Pre-bid meeting date	As published in GEM bid document
Last date to seek clarification	As published in GEM bid document
Last Date and Time for RFP submission / upload of bids	As published in GEM bid document
Date and time for opening of Technical Bids	As published in GEM bid document
Primary point of contact for the RFP	
Name: Tushar Sukhadeo Gondane Email: tushar.g@ippbonline.in	
Place of Pre-bid meeting	<u>Online</u> <u>VC LINK -</u> https://ippb.voxmeet.ai/IPPBRoom2 <u>The representative needs to submit / carry an Authorization certificate</u> from their competent personnel to attend any meeting as per Annexure 22 – Authorization letter
Place of Bid submission and RFP Opening	Online on GeM portal
Address for Communication	India Post Payments Bank Ltd. 2nd Floor, Speed Post Centre Building Bhai Veer Singh Marg, Gole Market New Delhi – 110001.

- 1) The Bank reserves the right to change the schedule mentioned above or elsewhere mentioned in the document, which will be communicated by placing the same as corrigendum on the

Government E Marketplace Portal (www.gem.gov.in) (hereon referred to as "GEM Portal") and / or on IPPB Bank Website (www.ippbonline.com)

- 2) The copy of this document may be downloaded from the GEM Portal / Bank website free of cost.
- 3) Complete confidentiality should be maintained. Information provided here should be used for its intended scope and purpose. Retention of this RFP signifies your agreement to treat the information as confidential.
- 4) Earnest Money Deposit must accompany all RFP offers as specified in this RFP document and it should be handed over to the bank in a separate cover. The EMD, if submitted in Bank Guarantee form, should reach to above mentioned address of India Post Payments Bank Ltd on or before the closing date as mentioned in the above RFP timelines. This cover containing EMD in BG form shall be opened along with online Technical Bids.
- 5) The Bank reserves the right to reject any or all offers without assigning any reason.
- 6) All communication with regards to this request for proposal needs to be directed to IPPB directly either through email at the addresses mentioned above and within the stipulated time.
- 7) Bids received shall be opened online at the specified date and time given in GeM Bid document. If the office is closed on the specified date of opening of the bids, the opening shall be done on the next working day at the same time
- 8) Eligibility criteria, Terms and Conditions and various formats and pro forma for submitting the RFP offer are described in the RFP document.
- 9) GeM Contract will be formal PO document and start date of as mentioned in GeM Contract document will be start date of contract.

Common terms of reference / definition

S. No.	Definitions of some common terms & Abbreviations	
1.	Bank	India Post Payments Bank
2.	DoP	Department of Posts
3.	Bidder / Respondents	Applicants applying for this RFP and are interested in providing the product / services as per the RFP document.
4.	Document	Refers to this RFP document
5.	Contract / Agreement	Refers to the master services agreement (including service agreements, terms, and conditions etc.) to be signed between IPPB and the selected bidder
6.	Proposal / Bid / Application / Tender / Offer	Refer to the bid submitted by the bidder in response to the RFP herein.
7.	User	Refer to the Bank employees and other identified personnel
8.	Intellectual property Rights	Shall mean, on a worldwide basis, any and all: (a) rights associated with works of authorship, including copyrights & moral rights; (b) Trade Marks; (c) trade secret rights; (d) patents, designs, algorithms and other industrial property rights; (e) other intellectual and industrial property rights of every kind and nature, however designated, whether arising by operation of law, contract, license or otherwise; and (f) registrations, initial applications, renewals, extensions, continuations, divisions or reissues thereof now or hereafter in force (including any rights in any of the foregoing)
9.	RFP	Request for Proposal
10.	Contractor/ Supplier /Vendor	Final successful Bidder to whom the contract will be awarded
11.	EMD	Earnest Money Deposit
12.	CBS	Core Banking Solution
13.	OEM	Original Equipment Manufacturer
14.	SLA	Service Level Agreement
15.	MoU	Memorandum of Understanding
16.	IST	Indian Standard Time GMT + 5:30
17.	INR / Rs	Indian Rupee
18.	PBG	Performance Bank Guarantee
19.	DC	Data Centre
20.	DR	Disaster Recovery
21.	NDA	Non-Disclosure Agreement
22.	MSA	Master Service Agreement
23.	NCCRP	National Cybercrime Reporting Portal
24.	I4C	Indian Cybercrime Coordination Centre
25.	NIC	National Informatics Centre

Interpretations:

- Reference to a person includes any individual, firm, body corporate, association (whether incorporated or not) and authority or agency (whether government, semi government or local).
- The singular includes the plural and vice versa.
- Reference to any gender includes each other gender.
- The provisions of the contents table, headings, clause numbers, italics, bold print and underlining is for ease of reference only and shall not affect the interpretation of this Agreement.
- The Schedules, Annexures and Appendices to this Agreement shall form part of this Agreement.
- A reference to any documents or agreements (and, where applicable, any of their respective provisions) means those documents or agreements as amended, supplemented, or replaced from time to time provided they are amended, supplemented, or replaced in the manner envisaged in the relevant documents or agreements.
- A reference to any statute, regulation, rule or other legislative provision includes any amendment to the statutory modification or re-enactment or, legislative provisions substituted for, and any statutory instrument issued under that statute, regulation, rule or other legislative provision.
- Any agreement, notice, consent, approval, disclosure, or communication under or pursuant to this Agreement is to be in writing.
- The terms not defined in this agreement shall be given the same meaning as given to them in the RFP. If no such meaning is given technical words shall be understood in technical sense in accordance with the industrial practices.

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1. PART – A – GENERAL TERMS AND CONDITIONS

1. Introduction

India Post Payments Bank Limited ("IPPB") is a company incorporated and registered under Companies Act, 2013 and a payments banking company registered under section 22 (1) of the Banking Regulation Act, 1949 duly licensed by Reserve Bank of India. IPPB is engaged in conducting banking and payments business providing services to retail and corporate customers. IPPB has its Registered at Speed Post Center, Bhai Veer Singh Marg, New Delhi – 110 001.

The bank has pan-India presence with around 650 regional branches / banking outlets which are connected to approx. 1.55 lakh Post offices which will act as access points for the bank and its customers. Around 1.5 lakh microATMs are distributed to Postal staff for carrying out business of IPPB. The Bank has also been at the forefront of technology adoption to enable best-in-class customer service to its customers. All branches and access points including the Micro ATMs with all the GDS/Postman are under Core Banking Solution (CBS).

The bank is looking to select a **bidder who can provide service for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime** response to the cases/transactions received by **India Post Payments Bank** [in PART – B – BID SPECIFIC CLAUSES](#) of this document. Selection will be made based on the method as described in the following sections after meeting the eligibility criteria.

Bid submission, queries and all other terms and conditions are detailed in the following sections of this document. All communication with regards to this proposal needs to be directed to all the addresses mentioned above.

2. Bid Security Declaration

The bidders are required submit Bid securing declaration as per annexure.

3. Language of the Bid

The Bid prepared by the Bidder, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and Bank shall be written in English language.

4. Signature

The individual signing/ digitally signing the bid or any other connected documents should submit an authenticated copy of the document(s), which authorizes the signatory to commit and submit bids on behalf of the bidder. All obligations committed by such signatories are liable to be fulfilled by the Bidders who would be selected to carry out the project as per the terms of this tender.

5. Bid Submission Process

- a) The Bidders are required to submit soft copies of their Bids electronically on the GEM Portal within due date and time of bid submission.
- b) Bank will not accept delivery of Bid in any manner other than that specified in this document. Bid delivered in any other manner shall be treated as defective, invalid, and rejected.
- c) An authorized signatory of the Bidder shall sign/digitally sign all the pages of the original Bid. The authorization shall be in the form of a written Power of Attorney in [Annexure 8 – Power of Attorney for signing of application](#) accompanying the Bid or in any other form demonstrating that the signatory has been duly authorized to sign.

- d) Bidders are required to enroll on GEM Portal and follow the instructions as available on GEM portal (URL: www.gem.gov.in).
- e) Bidder has to abide with, all the standard procedures of the GEM portal and GeM General terms and conditions (GeM GTC) of the Bid document. Bidders should also read the special instructions, manuals, etc as available on GEM portal. In case of any contradiction between GeM GTC and buyer (IPPB) added terms and condition, the term of buyer organization will prevail over GeM GTC of the bid.
- f) As part of the enrolment process, the Bidders will be required to choose a unique username and assign a password for their accounts.
- g) Bidders are advised to register their valid email address and mobile numbers as part of the registration process. These would be used for any communication from the GEM Portal.
- h) Bidder will then log in to the site through the secured log-in by entering their user ID/password and / or the password of the DSC/e-Token.
- i) The Bidders should upload the scanned copies of all relevant certificates, documents etc. on gem portal in support of their RFP. The Bidder should sign on all statements, documents etc. uploaded by them owning responsibility for their authenticity. Bids must be submitted online by the last date and time indicated in the "Invitation to Bid" / GEM Bid Document.
- j) Bidders are strongly advised not to wait till the last day for uploading and submitting their bids.
- k) Bidders are required to submit bids as per the format specified in this document. Submission of the Bids in wrong format will result in the Bid being deemed non-responsive.
- l) The following official(s) of IPPB shall be available for any assistance for this RFP:

S. No.	Name of Official	Designation	Email ID
1	Tushar Sukhadeo Gondane	Sr. Manager - Procurement	tushar.g@ippbonline.in

The bids shall be submitted in two parts enclosed in two separate documents:

- a. Technical Bid
- b. Price Bid

All the pages of the proposal including annexures and documentary proofs should be numbered and signed/digitally signed by the authorized signatory. The proposal should be prepared in English in PDF format.

- m) For the Financial bid, the bidders are not required to submit hardcopy during bid closure. However, the L1 bidder (after the Reverse auction process) may be asked to submit the price breakup as per the format.

6. Guidelines for Reverse auction

If the bank decides to select the L1 bidder through reverse auction, then the guidelines of GEM portal for reverse auction will be applicable. However, the final L1 bidder will be required to submit the price breakup of the final cost after reverse auction. (Applicable for this bid)

7. Performance Security

The Performance security / Performance bank guarantee (PBG) may be furnished in the form of Insurance Surety Bonds, AC Payee Demand Draft, Fixed Deposit Receipt from a commercial Bank, Bank Guarantee from a commercial bank or online payment in the account of IPPB.

The successful bidder(s), whose bid is accepted, will be required to furnish Performance Security / Performance Bank Guarantee of **5% (Five Percentage)** of the GeM Contract value within the period specified (within 15 days of issue of GeM Contract to successful bidders). PBG should remain valid for a period of 60 days beyond the date of completion of all contractual obligations of the selected bidder. In case the bidder fails to deposit the said performance guarantee within the period as indicated above, the Earnest Money deposited by the bidder shall be forfeited automatically without any notice to the bidder. The Earnest Money deposited along with bid shall be returned after receiving the aforesaid Performance Guarantee.

The terms and conditions for the Performance Bank Guarantee are as follows:

- i. The Performance bank guarantee shall be in the standard format as per [Annexure 11 – Bank Guarantee for Performance Guarantee](#)
- ii. The Performance Bank Guarantee shall be issued by a Scheduled Commercial Bank in India.
- iii. The Performance Bank Guarantee shall be denominated in Indian Rupees. All charges whatsoever such as premium; commission etc. with respect to the Performance Bank Guarantee shall be borne by the successful Vendor.
- iv. The Performance Bank Guarantee so applicable must be duly accompanied by a forwarding letter issued by the issuing bank on the printed letterhead of the issuing bank. Such forwarding letter shall state that the Performance Bank Guarantee has been signed by the lawfully constituted authority legally competent to sign and execute such legal instruments. The executor (BG issuing Bank Authorities) is required to mention the Power of Attorney number and date of execution in his / her favour with authorization to sign the documents.
- v. Each page of the Performance Bank Guarantee must bear the signature and seal of the BG issuing Bank and Performance Bank Guarantee number.
- vi. In the event of the Vendor being unable to service the Agreement or causing delay in providing the requisite service for whatever reason, the Payment Bank reserves the right to invoke the Performance Bank Guarantee at its sole discretion.
- vii. Notwithstanding and without prejudice to any rights whatsoever of the Bank under the Agreement in the matter, the proceeds of the Performance Bank Guarantee shall be payable to Bank as compensation by the successful Vendor for its failure to complete its obligations under the Agreement. Bank shall notify the successful Vendor in writing of the exercise of its right to receive such compensation within 14 days, indicating the contractual obligation(s) for which the successful Vendor is in default.
- viii. The Bank shall also be entitled to make recoveries from the successful Vendor's bills, Performance Bank Guarantee, or any other amount due to him, the equivalent value of any payment made to him due to inadvertence, error, collusion, misconstruction, or misstatement.

- ix. In case of delay in delivery, installation attributable to bidder, penalty will be levied. But apart from that additional PBG for delayed period is also to be provided by vendor as this will lead to delay in start date of warranty.
- x. The Performance Bank Guarantee may be discharged / returned by Bank upon being satisfied that there has been due performance of the obligations of the successful Vendor under the Agreement. However, no interest shall be payable on the Performance Bank Guarantee.

8. Public Procurement (Preference to Make in India), Order 2017

The bank will comply with the government guidelines on Public Procurement (Preference to Make in India), 2017 and its subsequent revision, and will evaluate the proposals as per the guidelines.

For this bid Class-1, Class-2 and Non-Local Suppliers can submit their bids. Purchase Preference will be provided to suppliers in line with guidelines of Public Procurement (Preference to Make in India), 2017 and its subsequent revisions.

All Bidders should necessarily submit local content certificate as per format Annexure 12.

Also, the bidders to note that the RFP is not divisible in nature.

9. Compliance to Government Law

The Bank will adhere to the OMs no. 6/18/2019- PPD dated 23rd July and 24th July, 2020 & its subsequent notifications/ revisions issued by the Department of Expenditure (Ministry of Finance) of the Govt. Of India having guidelines regarding procurement from bidders from a country or countries which share land boundary with India. The bidders have to submit the registration certificate / undertaking along with the technical bid as per the attached format as per [Annexure 23 – Undertaking under Rule 144 \(xi\)](#)

10. Terms and Conditions

11.1 Period of validity of bids

The process of bid evaluation, approval and subsequent activities may be assumed to take a reasonable amount of time. Therefore, the bids shall remain valid for **90 days** from the due date of submission of bids.. A bid valid for a shorter period shall be rejected by the Bank as non-responsive.

In case the day upto which the bids are to remain valid falls on/ subsequently declared a holiday or closed day for the Procuring Entity, the bid validity shall automatically be deemed to be extended upto the next working day.

In exceptional circumstances, the IPPB may request the bidder for an extension of the period of validity over and above as mentioned in the GeM bid for a specified additional period. The request and the bidders' responses shall be made in writing or electronically (email/GeM portal). A bidder may agree to or reject the request. A bidder who has agreed to the IPPB's request for extension of bid validity, in no case, will be permitted to modify his bid.

11.2 Modifications and withdrawal of bids

No bid can be modified by the bidder subsequent to the closing date and time for submission of bids.

11.3 Clarification of bids

A bidder requiring any clarification on this document may notify the bank in writing by e-mail at the email address provided in the "RFP Summary Sheet". The bidders may also raise their queries through the representation window as available on GEM portal. Bidders shall send the queries only in the prescribed format specified in [Annexure 21 – Pre-Bid Query Format](#) mentioned in the document.

No requests for clarification will be accepted by telephone. Bank shall respond over email or in writing and post online any request for clarification of the RFP document that it receives until the date

mentioned in RFP Summary Sheet. Any questions submitted post the clarification submission date, the same may not be considered by the bank. In no event will the bank be responsible for ensuring that bidder's inquiries have been received by the bank.

11.4 Erasures or alterations

The proposal / documents submitted by the bidder on the GEM portal would be considered as the official / final submission by the bidder.

The offers containing erasures or alterations will not be considered. There should be no hand-written material, corrections, or alterations in the offer. Technical details must be completely filled. No columns of the tender should be left blank. Offers with insufficient information and offers which do not strictly comply with the stipulations given in this document, are liable for rejection. Correct technical information of the product / service being offered must be filled in. Filling in of the information using terms such as "OK", "accepted", "noted" may not be acceptable. The bank may treat offers not adhering to these guidelines as unacceptable.

11.5 Confidentiality

The information given in this document is confidential and is for use by the bidder to whom it has been issued. Each party, i.e., the Bank and the bidder, shall treat the other party's information as confidential and will take necessary steps to prevent the disclosure of the other's confidential information to third parties. Both the parties will keep the contents of order/ Agreement confidential, including the price information.

11.6 Cost and Currency

The offer must be made in Indian Rupees only.

The total price quoted should be inclusive of GST. GST details to be mentioned separately.

The Bidder shall bear all its costs associated with or relating to the preparation and submission of its Bid including but not limited to preparation, copying, postage, delivery fees, expenses associated with any demonstrations or presentations which may be required by the Bank, or any other costs incurred in connection with or relating to its Bid. All such costs and expenses will remain with the Bidder and the Bank shall not be liable in any manner whatsoever for the same or for any other costs or other expenses incurred by a Bidder in preparation or submission of the Bid, regardless of the conduct or outcome of the Bidding Process.

11.7 Compliance to Terms and Conditions

It is essential that all the bidders should agree to all the above-mentioned terms and conditions, and they should submit one statement to that effect on the letterhead of the bidder along with the technical bid as per [Annexure 1 – Conformity Letter](#) otherwise the offer shall be rejected.

11.8 Applicable law and jurisdiction of court

This RFP shall be governed in accordance with the Laws of India for the time being in force and will be subject to the exclusive jurisdiction of Courts at Delhi (with the exclusion of all other Courts).

11. Additional Terms and Conditions

Following additional terms and conditions shall apply to the evaluation process:

12.1 Bidder warranties

By submitting a Response, Bidder represents and warrants to the Bank that, as at the date of submission:

- i. The Bidder has fully disclosed to the Bank in its Responses all information which could reasonably be regarded as affecting in any way evaluation of the response.

- ii. All information contained in the Bidder's Response is true, accurate and complete and not misleading in any way.
- iii. No litigation, arbitration or administrative proceeding is presently taking place, pending or to the knowledge of the Bidder threatened against or otherwise involving the Bidder which could have an adverse effect on its business, assets or financial condition or upon IPPB's reputation if the response is successful.
- iv. The Bidder will immediately notify IPPB of the occurrence of any event, fact or circumstance which may cause a material adverse effect on the Bidder's business, assets or financial condition, or IPPB's reputation or render the Bidder unable to perform its obligations under the service level agreement, if any or have a material adverse effect on the evaluation of the responses by; and
- v. The Bidder has not and will not seek to influence any decisions of IPPB during the evaluation process or engage in any uncompetitive behaviour or other practice which may deny legitimate business opportunities to other Bidders.

12.2 Confidentiality

Bidder must keep confidential any information received from or about IPPB as a result of or in connection with the submission of the Response. All information contained in the Response, or in subsequent communications shall be deemed confidential and may be used only in connection with the preparation of Bidder's Response. Unless expressly agreed in writing prior to submissions, Responses are not confidential and may be used by Bank in whole or part. Bank, however, will not disclose the information provided by Bidder in a Response other than to its affiliates or to its professional advisors, unless required otherwise by any provisions of law. Additionally, and at any point of the evaluation and selection process, Bank may require the Bidder to execute an NDA if the Bidder has not executed an NDA with Bank previously.

12.3 Not an offer to contract

This RFP is not an offer to contract, nor should it be construed as such; it is a definition of specific requirements and an invitation to recipients to submit a responsive proposal addressing such requirements. IPPB reserves the right to make no selection and enter into no agreement as a result of this RFP.

12.4 Bank's Right

It should be understood that your response to this RFP constitutes an offer to do business on the terms as defined in this tender. At any stage of the tendering process, Bank reserve the right to abandon/ cancel the Tender process and issue another tender for identical or similar Services.

The draft copy of the Master Service Agreement, Integrity Pact as well as Non-Disclosure Agreement (NDA) is part of this RFP. The bidders are required to go through the same diligently. Any bidder who intends to participate in the RFP must undergo through the RFP inclusive of these documents and must agree to all the terms and conditions.

Any doubt / clarity / query regarding the RFP including the draft MSA / NDA / Integrity pact or any terms and conditions of the RFP must be raised in the pre-bid format during the pre-bid meeting stage.

12.5 Financial documents

IPPB may request additional financial / business information from the Bidder at its discretion.

12.6 Selection criteria

The selection criteria, inquiries, questions, or information put forth in the response are meant to be provided on the aforesaid and established through the details submitted by the bidder in the Technical Bid. Financial bids of those companies which do not meet the evaluation standard, will not be opened, and processed further.

12.7 Termination/or suspension of evaluation process

Bank reserves the right to suspend or terminate the Bidder evaluation process (in whole or in part) at any time in its absolute discretion and without liability to the Bidder or any third party. Bidders will be notified if any suspension or termination occurs, but IPPB is not obliged to provide any reasons.

12.8 Other Rights

Without limiting its rights under any other clause of this evaluation process or at law, and without liability to the Bidder or any third party, IPPB may at any stage of the evaluation process:

- i. Require additional information from a bidder.
- ii. Change the structure and timing of the evaluation process.
- iii. Terminate further participation in the evaluation process by a bidder.
- iv. Terminate negotiations being conducted with a bidder.
- v. Vary or extend the timetable and evaluation process.

12.9 Responsibility for Costs

Bidder is responsible for all costs, expenses or liabilities incurred by them or on their behalf in relation to the evaluation process (including in relation to providing IPPB with the response, the revised response or any additional information).

12.10 Non-Reliance by Bidder

Bidder, by submitting a Response, acknowledges that:

- i. it does not rely on any information, representation or warranty, whether oral or in writing or arising from other conduct, other than that specified in this RFP or otherwise provided by IPPB in writing;
- ii. it has made its own inquiries as to regarding the risks, contingencies and other circumstances that may have an effect on the Bidder's Response as well as the accuracy, currency or completeness of such information; and
- iii. Information provided in its Responses are based on historical trends does not constitute a representation that such trends will continue into the future or occur again, and nothing contained in its response can be relied upon as a commitment, guarantee or representation regarding future events or performance.

12.11 IPPB's right to vary

IPPB reserves the right to vary any aspect of this evaluation process, RFP without liability to bidder. Where IPPB varies any aspect of this evaluation process or the agreement, the bank shall notify the Bidder of that variation.

12.12 Incorporation of Responses into agreement

The successful bidder as concluded by the Bank shall sign a service level agreement. Bank may, at its sole discretion, incorporate any portion of any successful response of a successful Bidder into the final service level agreement. The bank may require a successful Bidder to submit, before finalization of the service level agreement, details of issues which may affect their ability to act as a Bidder.

12.13 Indemnity

1. The bidder (the "Indemnifying Party") undertakes to indemnify bank (the "Indemnified Party") from and against all Losses on account of bodily injury, death or damage to tangible personal property arising in favour of any person, corporation or other entity (including the Indemnified Party) attributable to the Indemnifying Party's negligence or wilful default in performance or non-performance under this Agreement. If the Indemnified Party promptly notifies Indemnifying Party in writing of a third-party claim against Indemnified Party that any Service provided by the Indemnifying Party infringes a copyright, trade secret or patents incorporated in India of any third party, Indemnifying Party will defend such claim at its expense and will pay any costs or damages

that may be finally awarded against Indemnified Party.

Further, Indemnifying Party will indemnify the Indemnified Party, if the loss to the indemnified party is caused by:

- i. an act or omission of the bidder, director/ authorized signatory, its agents, employees, or partners of the firm, proprietor etc. in the performance of the services provided by the bidder,
- ii. breach of any of the terms of this Request for Proposal or breach of any representation or warranty by the bidder,
- iii. use of the deliverables and or services provided by the bidder,
- iv. infringement of any patent, trademarks, copyrights etc. or such other statutory infringements in respect of all components provided to fulfill the scope of the work herein Bidder shall further indemnify the bank against any loss or damage to the Bank's premises or property, Bank's data, loss of life, etc., due to the acts of the bidder's employees, agents or representatives.
- v. The bidder shall further indemnify the Bank against any loss or damage arising out of loss of data, claims of infringement of third-party copyright, patents, or other intellectual property rights, and third-party claims on the Bank deliverables at all points of time,

2. The indemnities set out in point 1 shall be subject to the following conditions:

- i. the Indemnified Party, as promptly as practicable, informs the Indemnifying Party in writing of the claim or proceedings and provides all relevant evidence, documentary or otherwise.
- ii. the Indemnified Party shall, at the cost of the Indemnifying Party, give the Indemnifying Party all reasonable assistance in the defence of such claim including reasonable access to all relevant information, documentation and personnel provided that the Indemnified Party may, at its sole cost and expense, reasonably participate, through its attorneys or otherwise, in such defence;
- iii. if the Indemnifying Party does not assume full control over the defence of a claim as provided in this Clause, the Indemnified Party may participate in such defence at its sole cost and expense, and the Indemnified Party will have the right to defend the claim in such manner as it may deem appropriate, and the cost and expense of the Indemnified Party will be recoverable from the Indemnifying Party;
- iv. the Indemnified Party shall not prejudice, pay or accept any proceedings or claim, or compromise any proceedings or claim, without the written consent of the Indemnifying Party, provided that such consent shall not be unreasonably withheld;
- v. all settlements of claims subject to indemnification under this Clause will
 - A. be entered into only with the consent of the Indemnified Party, which consent will not be unreasonably withheld and include an unconditional release to the Indemnified Party from the claimant or plaintiff for all liability in respect of such claim; and
 - B. include any appropriate confidentiality agreement prohibiting disclosure of the terms of such settlement; vi. the Indemnified Party shall account to the Indemnifying Party for all awards, settlements, damages and costs (if any) finally awarded in favour of the Indemnified Party which are to be paid to it in connection with any such claim or proceedings;

- vi. the Indemnified Party shall take steps that the Indemnifying Party may reasonably require to mitigate or reduce its loss as a result of such a claim or proceedings.

12.14 Representation and Warranties

Successful Bidder represents and warrants to the IPPB as follows:

- i. It has been duly incorporated in India and is valid as per the existing laws of India.
- ii. It shall not violate any proprietary and/ or intellectual property rights of any third party, including without limitation, confidential relationships, patents, trade secrets, copyright and/ or any other proprietary rights.
- iii. The Employees of the successful Bidder shall continue to be its Employees and work under its discretion and shall not claim any employment from IPPB by the virtue of providing the services, irrespective of the location of their work. The payment of salary, benefits and all related taxes for the employees of the respective party will be the sole responsibility of that party only.
- iv. Will not contravene any provision of any law, statute, rule or regulation or any order, writ, injunction or decree of any court, governmental instrumentality or Governmental Authority to which it is subject.
- v. The signatory to this agreement has due authority and power in its favour to execute this Agreement and bind and such authority and power is still valid and subsisting.
- vi. This Agreement constitutes legal, valid and binding obligations of such Party enforceable in accordance with its terms; and
- vii. The execution and delivery of, and the performance of obligations under and in compliance with the provisions of this Agreement will not result in:
 - a. a violation of any terms and conditions of Articles of Association, Memorandum of Association or any other relevant charter documents of respective party whereby the respective Parties are constituted; or
 - b. a breach of, or constitute a default under, any instructions to which it is a party or by which it is bound; or
 - c. a violation of any law or regulation in any jurisdiction having the force of law or of any order, judgment or decree of any court or governmental agency or agreement to which it is a party or by which it is bound.
- viii. That the successful Bidder is not misleading IPPB in any way;
- ix. no litigation, arbitration or administrative proceeding is presently taking place, pending or to the knowledge of the successful Bidder threatened against or otherwise involving the successful bidder which could have an adverse effect on its business, assets or financial condition or upon IPPB's reputation;
- x. That the successful Bidder will immediately notify IPPB of the occurrence of any event, fact or circumstance which may cause a material adverse effect on the successful Bidder business, assets or financial condition, or IPPB's reputation or render the successful Bidder unable to perform its obligations under the agreement, if any or have a material adverse effect on the evaluation of the responses by Bank; and
- xi. the successful Bidder has not and will not seek to influence any decisions of IPPB during the evaluation process or engage in any uncompetitive behavior or other practice which may deny legitimate business opportunities to other successful bidders.

12.15 Non-Disclosure Agreement

As the successful bidder may have access to the data of the Bank, the Bank will require the successful bidder to sign a Non-Disclosure agreement undertaking indemnity for not disclosing or part with any information relating to the Bank and its data to any person or persons or authorities, without written consent of the Bank. Breach of the same will result in cancellation of the agreement apart from other remedies which shall be available to the Bank against the bidder. Bidder shall sign nondisclosure

agreement (Format attached within the RFP) within one month of issuing of GeM Contract failing which Bank will cancel the order and may take appropriate action against the bidder.

12.16 Order Cancellation

IPPB reserves its right to cancel the order (fully or partially) in the event of work not done per the mutually agreed terms & conditions. In addition to the cancellation of the GeM Contract, the IPPB also reserves the right to appropriate the damages from the performance bank guarantee (PBG) given by the Service Provider and/or foreclose the bank guarantee for damages / losses incurred by IPPB. The Service Provider shall continue to fulfil the contract to the extent not terminated.

12.17 Force Majeure

Neither party shall bear responsibility for the complete or partial non-performance of any of its change control obligations (except for failure to pay any sum which has become due on account of receipt of goods under the provisions of the present contract), if the non-performance results from such Force Majeure circumstances as Flood, Fire, Earth Quake and other acts of God as well as War, Military operation, blockade, Acts or Actions of State Authorities or any other circumstances beyond the parties control that have arisen after the conclusion of the present contract.

12.18 Blacklisting

If the service Provider fails to perform the obligations as per this agreement and the RFP or his/her performance is found to be unsatisfactory by IPPB (India Post Payments Bank Ltd.), IPPB may at its sole discretion blacklist the Service Provider from participating in any offer by IPPB calling Bids, for a period of 2 years.

12.19 Intellectual Property Rights

The name, logo, design and other proprietary rights of the India Post Payments Bank (IPPB) is solely the property of IPPB and in no case the Bidder shall use the same, except for the purposes mentioned under this agreement and exclusively for the IPPB only.

12.20 Liquidated damages

Time is essence of the Contract and IPPB expects the bidder to complete the project implementation within the specified period as per bid document and provide services for complete the tenure of contract as specified in the bid document.

Except as otherwise provided under the SLA for any non-performance or delay in performance of obligations by the Service Provider, if the Service Provider fails to deliver any or all of the Deliverables or perform the Services within the time period(s) specified in the Contract, the Bank shall, without prejudice to its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to 0.5 percent of total Contract Price per week of delay until actual delivery or performance, subject to maximum deduction of 10% of the total Contract Price and shall be entitled to invoke the guarantees furnished by the bidder to the extent of the liquidated damages applicable.

The liquidated damages are to be calculated on the Contract Price.

IPPB reserves the right to recover the liquidated damages from any payment to be made under this Contract. The liquidation damages represent a genuine pre-estimate of the loss or damage that IPPB may suffer due to delay or breach in performance of the obligations by the Service Provider.

12.21 Precedence of Documents

If there is any inconsistency between the terms of this RFP and any of its appendices, schedules, or attachments then, unless the contrary is explicitly stated in this RFP, the terms of the RFP will prevail to the extent of any inconsistency.

12.22 Governing Laws & Jurisdiction

The RFP and selection process shall be governed by and construed in accordance with the laws of India and will be subject to the exclusive jurisdiction of Courts at Delhi (with the exclusion of all other Courts).

12.23 Disclosure and return

In the event that you elect not to respond to this RFP, then the restrictions shall continue to apply to the use or disclosure of the information. Additionally, Bidders must immediately return this document and certify in writing to the bank, that all copies have been deleted in soft copy and destroyed, for hard copy.

12.24 Subcontracting

Subcontracting is not allowed.

2. PART – B – BID SPECIFIC CLAUSES

2.1 Schedule A Scope of Work

2.1.1 Supply of Solution

1. Bank is looking for bidder who can Supply, Install, Implement, customize new end to end software solution to integrate with National Cybercrime Reporting (NCCR) Portal for Realtime response to the cases/transactions received by India Post Payments bank for facilitating effective communication between the entities on CAPEX basis in bank premises. Bank is expecting a High Availability (HA) set up, Active- Passive in both DC and DR environments.
2. Tenure will be of 5 years from the date of completion of successful Go-Live., Bank may further extend the contract for a period of 3 years (in three tranches, of one year each) at mutually agreed terms & conditions subject to satisfactory performance of successful bidder.
3. The Bidder to provide the details of the Software, Databases and other applicable component etc. for successful implementation of the proposed solution during the technical evaluation along with the technical documents. IT Infra - servers, OS and storage will be provided by the Bank. However, bidder needs to factor in the cost of Database licenses and support. Support of Database should be valid throughout the contract period.
4. Bidder needs to install and configure the infrastructure as per application sizing required and Bidder to maintain and support software after go live till contract period. All licenses/ warranties should be procured in bank's name. During contract period bank may shift their Datacentres to other locations within the country, the bidder needs to ensure that their support should valid across India. Further, bidder should undertake to continue to provide support to new location(s) without any additional cost to bank. Successful bidder will be informed about old and new location details.
5. The bidder should provide hardware sizing and software Solution in high availability as specified, and Services which includes, development, integration, implementation, customization, operations, monitoring, management, audit compliance, training, and knowledge transfer in respect of complete solutions as detailed in the subsequent sections of the RFP. Also, Sizing provided should be reasonable as bank reserves right to evaluate the same. Storage will be provided by the bank; however, bidder will factor and bear the cost for the database licenses and support. Bank is expecting a High Availability (HA setup, Active-Passive in both DC and DR environments. Bank will provide server racks space and power. The bidder shall size the infrastructure such that the average daily utilization of CPU, memory, and storage during business hours does not exceed 70%. Infra provided by the Bank shall be on private cloud hosted on premises.
6. Bidder shall be end to end responsible for the proposed solutions for each item under the scope including but not limited to software, licenses, etc. dependent on the solutions if any.

7. Bidder to ensure that Development, Production and Testing Environment Should be kept independent and isolated from one another. No testing to be carried out in Production environment and principle of least privilege and need to know Basis to be followed.
8. Bidder needs to provide complete solutions with uptime mentioned in the Service Level Agreement (SLA) section and having no performance.
9. Bidder is responsible to do the infrastructure sizing as per solution requirement in line with bank volumetric growth. "Proposed solution is meant to respond and manage cyber-crime complaints so volume prediction is not possible. Solution should be able to handle transaction volumes of 5000 per day with an annual increment of 50 % YOY.
10. The Bidder should provide the detailed specifications (including the core, memory and the storage) along with any other specific configurations for VM/Physical Server for hardware provided. In case the sizing is not done properly, bidder will be penalized as per mentioned in the penalty terms of this RFP.
11. Application and Database should be hosted separately on a dedicated infrastructure (physical/logical).

2.1.2 General Scope

1. Bidder has to provide the complete software that will be integrated with NCCR Portal and Bank's various internal systems to fetch and push data. Selected bidder will be responsible to integrate with source applications' API or batch processes. Selected bidder should also have skills to develop APIs in Finacle, if needed.
2. Bidders must thoroughly comprehend the I4C portal's functionalities and processes. This includes understanding how requests are submitted, tracked, and responded to within the system.
3. The proposed solution should have the facility to take requests in multiple formats (ISO, json, xml, delimited etc) from NCCR portal and convert the same in the bank's different system understandable format (json, XML, ISO, delimited etc). Sample Requests for reference are shared in the [Annexure 20- API Sample Formats](#).
4. The proposed solution should have the facility to report data requested by I4C/NIC-MHA department in real time or near real time.
5. Bidder to ensure that all requests received from I4C are responded within the TAT defined by the I4C/Bank. In case of any delay in the same bidder will be penalized as per the terms and conditions of the RFP.
6. Solution should have capability to fetch data from various systems simultaneously, process the received data and send back response to NCCRP.
7. Solution should have capability to send various types of requests such as Customer Inquiry, Balance Inquiry, Mini Statement Inquiry, Full Statement Inquiry, Lien Marking, Freeze Marking, Beneficiary details enquiry, or any other request as required by bank on account in Core Banking Solution (CBS) or any other system as required by bank.
8. The system should have the capability to perform basic calculations if needed any on the data received from CBS or any other systems through inquiry calls.
9. Solution must have the capability to analyze, manipulate, extract the fields/data from the statements/data received from different bank's systems through Application Programming Interface (API) calls.
10. Solution should have capability of providing a dashboard to the users to see the reported transactions and take necessary actions against the same. Reported transactions refer to complaints, transactions involved & accounts involved in those complaints.
11. Solution should have capability of integrating with different channels of bank and provide all the necessary details i.e. 360-degree view of transaction like beneficiary details, ATM/POS'S location, Ip address, branch id and etc based on transaction mode.

12. The solution should have the capability to generate and send Acknowledgement number for a request received from I4C/NIC-MHA. Acknowledgement number for the complaints is provided by I4C, while for every transaction system should generate a unique reference number for banks internal reference.
13. Systems should have rule engine to create various type of rules for reporting transaction to different portals such as (Total Freeze, Debit freeze, Credit Freeze and Lien marking sets etc).
14. The solution should have the capability of employing measures such as authentication, authorization, encryption, and monitoring to secure API endpoints and prevent unauthorized access.
15. Since proposed Software will be integrated with NCCR Portal and bank's Internal System, hence Encryption and other Security Controls should be in place to protect sensitive Data. API used for communication between systems and for fetching details should protect sensitive data and should ensure System integrity
16. Solution should have the capability to define firewall policies to accommodate the specific traffic patterns and communication needs of APIs, allowing legitimate API traffic while blocking malicious activity.
17. The solution should have the capability to authenticate an API request with the credentials received from I4C/NIC-MHA and credentials stored in bank's database.
18. The successful bidder is responsible for further fine-tuning, additional configuration or customization if required or mandated by regulatory authorities.
19. In case of changes mandated/ instructed/ suggested by RBI or any other regulatory authority, government department, Bidder has to complete the same without any additional cost to the bank for such requests.
20. Bidder has to ensure implementation and maintenance of all industry best practices and stringent data security related to services including under this RFP. Bidder to submit details regarding what controls are deployed to avoid leakage of sensitive customer data. Cert-In Certified Auditor letter declaring details of controls deployed and other Security measures deployed for protecting Sensitive Data. & Latest Source Code report (specifying Application Version and Hash value) to be furnished by bidder to bank for the bank's Security team approval.
21. Selected service provider will have to ensure compatibility of the systems, data formats, connectivity, etc. at all levels for successful implementation and functioning of the services.
22. Selected bidder is expected to follow an agile development & implementation methodology.
23. Solution provider should provide separate UAT environment to bank for testing and training purposes.
24. Bidder to ensure that database should have the capability to store all the data received from CBS or any other applications from bank side in order to use the same for any reporting purpose. All data should be retained or made available as per the RBI guidelines and IT Act 2000.
25. Bidder to submit the Latest Security Assessment report complying OWASP Top 10 and other Industry practices and clearance to be obtained from Security Department before Production Deployment.
26. BRD will be created by the selected bidder. IPPB will participate and sign off the BRD document.
27. Selected bidder will be provided access to UAT set up of source applications. Selected bidder to integrate with source applications. Bidder needs to provide application test cases to test the proposed solution. The system should auto trigger actions as per the matrix defined by the Bank (For example, account freeze, account lien etc.)

2.1.3 Technical

1. Bidder has to provide Technical Specifications Document (TSD) including but not limited to APIs details, request/ response format, technical flow, Network Diagram, architectures, error codes, data base details tables, fields etc of all the modules/ services. These document needs to be

updated as and when new change gets implemented and need to be reviewed on half yearly basis.

2. Bank at its sole discretion reserve the right to shift the equipment at DC/DR to suitable location depending upon the need and the vendor will arrange to shift the equipment installed and commission the same at the shifted locations. The transportation cost shall be borne by the bank. Obtaining of road permits, form 32 and other security forms etc. will be the sole responsibility of the vendor. The vendor to arrange onsite support in case of shifting of equipment.
3. Bidder to ensure that DR drill activities for all systems/ applications are performed as per regulatory guidelines/requirement of bank and submit reports to bank. DR drill activities for all systems/applications are in scope of the bidder. Number of DR drills will be governed by RBI's guidelines and as per banks requirement.
4. Bidder should ensure high availability of all the applications/ systems.
5. Monitor Daily, Weekly, Monthly system's/ application's health check-ups and report to bank also.
6. Bidder should ensure that all data in transmission must be encrypted.
7. The RTO (Recovery Time Objective) and RPO (Recovery Point Objective) should be as per the standards defined by the bank/demanded by the ecosystem/ as per the RBI guidelines.
8. Bidder to provide the needed technical support for the solution as per the scope of this RFP. Escalation matrix to be submitted by the bidder as per [Annexure 19](#).
9. Redundancy at all levels must be ensured for Production and UAT sites.
10. Bidder to provide a dashboard for application monitoring at functional and technical aspects for the bank's need.
11. Bidder to ensure that application provided for incident management should have the capability to capture the raw data details for the requests such as timings, priority, comments for any issues. Self-declaration for the same need to be submitted for the same while submitting the bid.
12. Bidder has to ensure utilisation of the servers/ systems should be within the limits and submit it to bank on weekly basis.
13. Bidder has to ensure regular patching and updates of Databases and Application items including related component as per bank's policy. Monthly dashboard must be provided for the same to the bank.
14. Bidder must have sufficiently trained manpower to provide Technical Support for seamless operations of Solutions/ Systems at DC and DR locations. Bidder has to provide Escalation Matrix of the resources. Bidder has to intimate 15 days prior to any change/ replacement of the resources. This should be done after proper handover/ handholding.
15. Bidder has to provide 24 x 7 production support and promptly do the incident reporting as and when any incident, failover, declines. In case of any issue/ downtime from bank side, bidder to provide necessary support/ logs/ clarifications/ Audio and Video Call support (if required) for troubleshooting/ fix.
16. Bidder has to provide the downtime report as per banks requirement.
17. In case Bank engages new service provider or solution after the Contract period, the bidder must hand over the complete data as per bank's format, details of deployments, customizations undertaken during the engagement to the new bidder to ensure smooth handover without any disruption. The bidder must hand over the technical and functional documents, user manual and has to arrange proper support and knowledge transfers for migrations to bank / new partner without any extra cost to bank. In case bidder fails to do so, Bank can invoke Performance Bank Guarantee at its sole discretion.
18. Complete Audit Trail & Audit Logs (All system & user activities) should be available on request with the bank. Also Access to system should be through secure session. Further access to system should

be role based & configurable and SOP's preparation for granting and revoking access to the application.

19. Industry acceptable 'Change Management', 'Code Deployment' practices to be part of the solution and change controls like 'Version Control Management' to be part of the system.
20. The bidder should ensure that security measures are followed for safe storage and timely retrieval of data.
21. Bidder should obtain prior approval from the Bank in case if any activity to be outsourced by them or Bank specific data is to be shared to any other party, partly or fully, for any purpose. Bank has full right to approve/ reject the request basis internal decisions.
22. The bidder will not be permitted to take any crucial decisions on behalf of Bank without specific approval from Bank.
23. Bidder will be responsible for patching/ upgrade of applications etc.
24. Detailed Incident Report, Root Cause Analysis (RCA) document of any technical/ operational downtime/ operational error needs to be submitted to Bank in timely manner.
25. All planned downtime needs to be pre-informed to bank as per related guidelines, else this may be treated as downtime by bank.
- ~~26.~~ Solution should be able to handle transaction volumes of 5000 per day.
27. Direct access to Database (Production and DR) should be strictly restricted. (e.g. access through SQL Plus, Toad etc. should be restricted).
28. Selected vendor must ensure that product support from the OEM is available for all the software and database throughout the contract period.
29. Architecture and data flow diagram of the complete solution should be made available to the Bank for reference in a separate Annexure.
30. All the products used by bidder shall be appropriately licensed.
31. The solution should have mechanism to recover automatically from system outages caused due to network failures, abrupt shutdowns, etc.
32. System Performance report should be shared with the Bank before and after every change in production environment or whenever it is sought by the Bank.
33. The solution should be capable of handling the existing and future volume of transactions as mentioned in RFP document by ensuring the uptime system.

2.1.4 Interface

1. System will have to connect with all channels across bank including but not limited to-
 - a. Core Banking Solution (CBS, Finacle as of now)
 - b. Micro-ATM (MATM)
 - c. Mobile Banking (MB)
 - d. Net Banking (NB)
 - e. WhatsApp
 - f. Chat Bot
 - g. SMS and Email Gateways
 - h. NACH system
 - i. UPI system
 - j. Reporting module of bank/ Statistical Analysis System
 - k. Fraud Risk Management Module (FRM)
 - l. Real Time Transaction Monitoring System (RTTM)
 - m. Customer Relationship Management System (CSRM)
 - n. EDW (Enterprise Data Warehouse)
 - o. IMPS
 - p. NEFT/RTGS
 - q. AEPS

- r. SIEM
 - s. or any other bank's system.
2. Bidder to ensure that integrations with other systems is done following Secure Code guidelines and Risk assessment for integrated API to be provided by Bidder.
 3. Complete documentation of the API services (Functionality Wise) should be made available to the Bank for reference.
 4. Solution should provide API / Web Services integrations only with API security.

2.1.5 Alert

1. The System must include an alert management module that can send notifications via SMS, email, WhatsApp or any other system to bank users or customers. This functionality will activate in specific scenarios or as requested by the bank, ensuring timely communication and response for critical events.

2.1.6 Project Management**Go Live & Customization**

1. Bidder to assign a dedicated experienced onsite project manager which will serve as the primary point of contact for communication and coordination between bank and bidder and will also oversee the migration and implementation of the proposed solution till the Go live Sign-Off is provided by the bank.
2. Bidder has to appoint resource for day-to-day coordination, any troubleshooting till the of complete go live and final sign off.
3. Bidder must submit the Project Plan, Functional Specifications Document (FSD), Process Flow, System Architecture, implementation approach & implementation plan document including the timelines, resource allocation, and a detailed description of the implementation process to bank for the sign off purpose.
4. Bidder must provide User Manuals etc. for any rollout and any changes (pre or post go live) including list of all configurations of bank from time to time. These documents need to be updated by bidder as and when new change gets implemented and need to be required on half yearly basis.
5. Bidder has to formulate framework for Project deployment, Change Management, Quality Check, Risk Monitoring etc.
6. Bidder has to do User Acceptance Testing (UAT) and submit the logs before handing over the application to bank for the UAT/regression testing and go live. Also, any necessary certifications prior to go live will be bidder's responsibility only.
7. Bidder should also carry out the resilience/benchmarking/load testing for the application and should submit the report for the same to bank.
8. Bidder has to provide hand-holding support during roll-out.
9. Bidder will be responsible for all aspects of implementation. The Bidder will also be required to provide post implementation support and maintenance during the contracted period from the date of successful commissioning and acceptance by the bank.
10. Bank will provide UAT environment for doing sanity testing before go live. The Hardware and OS will be provided by the Bank and UAT environment licensing including software and databases shall be provided by the bidder.
11. Bidder needs to ensure that solution design/ architecture prepared is in consideration of industry best standard and practices and same has to be approved by Bank's Security team as well before roll out to production.

12. Bidder has to interact with relevant stakeholders to gather the inputs and finalise the above-mentioned documents, approaches and ensure timely project delivery.
13. Bidder has to arrange workshop and trainings for any rollout or any changes for go live. Bidder has to conduct annual training on user Interface/tools for Bank staff at bidder/bank location
14. The bidder should track & monitor the project & highlight any risks/ issues/ challenges well in advance to identified Bank's stakeholders.
15. Bidder has to submit weekly project status and conduct monthly meetings with bank and submit the system performances status.
16. Bidder should participate in all technical & functional discussions with bank or bank's vendor, if required.
17. Bidder to follow Change management process defined by the bank and shall not deploy any changes without approval of the bank.
18. All resources working on this project should be working from Bank premises only. No remote access to be allowed to bank's data.
19. Bank at its discretion may avail Onsite/Offsite resources based on the requirement.
20. The Service Provider shall regularly provide updates to the bank with respect to the Services provided and shall meet the designated personnel of the bank to discuss and review its performance at such intervals as may be agreed upon between the parties, or whenever called upon by the IPPB to do so.
21. Proposed solution's integration & implementation on production environment with I4C and bank's source application with at least 1 Services/ API will be considered as go live.

Support Phase

1. Bidder to ensure that once the Post Go-Live sign off is given by the bank, proposed resources must be deployed in the bank premises from the next day onwards. Any delay will attract the penalty as mentioned in this RFP.
2. The deployed resources must be capable to understand the bank's requirements and deliver the same to UAT as per agreed timelines.
3. In case bank is not satisfied with the deployed resource performance, bidder will have to replace the resources immediately and deploy the replacements in next 15 working days.
4. Any leaves to be taken by the deployed resources must be prior approved by the bank team and replacement should also be provided for the same duration.

2.1.7 Reports

1. Bidder has to provide various Reports, Dashboard, MIS for the solution implemented as per requirement of bank from time to time.
2. Auto emailers to be sent to the identified groups/ list for hourly, daily, monthly and yearly, transactions (count and amount, success, failed with reasons).
3. Business reports as per bank's requirements from time to time.
4. Bidder is required to deliver detailed analytics reports segmented by branch, zone, and location to identify hotspots of fraudulent activities.

2.1.8 Compliance

1. System should follow latest guidelines/ circulars of RBI any other regulator.
2. Bank or through its authorised companies will have right to audit the application. There might be surprise inspections also.
3. Bidder should resolve & make all necessary changes as mentioned/ observed/ suggested by Bank's auditor (internal or third-party auditors), statutory regulatory bodies, RBI etc.
4. The Bidder must ensure that the observations raised by the bank/auditor do not get repeated in subsequent audits. Any such non-compliance by Bidder shall attract penalty.

5. Bidder to ensure that solution should be capable of complying to all existing and future regulatory guidelines of RBI or any other regulatory authority and also adheres to requirements of IT Act 2000 (including amendments in IT Act 2008 and any other subsequent additions/amendments).
6. Bidder has to submit timely compliance status to bank as and when required by RBI or any other regulatory authority.
7. The Bidder shall have obligation to comply with RBI IT Outsourcing & Bank's policies pertaining to IS, IT, Cyber Security etc. from time to time.
8. The bidder to ensure that all the guidelines issued by CERT-in ([Cert-In - Guideline](#)) are followed related to the SBOM.
9. The bidder/vendor should have a mechanism for completing the background verification of the officials before on-boarding.
10. The bidder needs to submit the following KYC documents for all the onshore/offshore officials working on the project.
 - I. Latest Resume Copy (along with photograph).
 - II. Duly attested Address proof by resource and company HR.
 - III. Duly attested Aadhar Card by resource and company HR.
 - IV. Duly attested Relieving letter from previous employer by resource and company HR.
 - V. Duly attested Passport by resource and company HR.
 - VI. Duly attested Police verification report by resource and company HR.

2.1.9 Information Security

1. Bidder must monitor system logs and audit trails for suspicious activities and security related incidents and should also take appropriate actions to mitigate risks.
2. Password policy should be in line with bank's security policy and should be updated from time to time.
3. Secure Session Management such as Automatic log out for certain idle time (configurable), Account locking after configurable number of failed access attempts.
4. Proper profile management of the solution should be there in line with industry best practices, regulatory guidelines. Proper access control should be defined for protecting Bank data and access to the Data should be strictly on Need-to-Know Basis.
5. The proposed application must not use any freeware/Open source and supporting tools/plugins/libraries/software that are vulnerable to attacks.
6. The bidder/vendor should not allow privilege access from internet.
7. The bidder/vendor should configure or provides access to officials based on a documented and approved Role Conflict Matrix
8. All default admin and root users should be deleted/disabled, and access should be based on user specific IDs, and all such accesses should be logged.
9. The bidder/vendor should deploy Active Directory (AD) and strong Password Policy for End point and application access.

2.1.10 Technical and Functional Requirements

The key technical and functional requirements are mentioned in [Annexure 17 – Technical and Functional Requirements](#), but it is not exhaustive and may be subject to change during the System Requirement Document process. Some requirements may be implicitly understood for the desired product and therefore not explicitly listed here. The successful bidder is responsible for offering the latest available product version and making necessary customizations as defined in the final System Requirement Document. If needed, bidders are required to arrange for a reference site visit to understand the workflow and features before finalizing the technical feasibility of the proposal.

2.1.11 Escrow Arrangement

S N	Deliverables	Expected Timelines
o.		
1	PO Issuance	T
2	Detailed Requirements Gathering (DRG) Completion along with submission of Design Doc, Solution Doc, Final Implementation Plan, Solution Design, Project Plan, Functional Specifications Document (FSD), Process Flow, System Architecture, Implementation approach, Resource allocation plan	T + 1 Month
3	Delivery of Complete Software and Database Licenses including related components (DC, DR, and UAT) as per RFP requirement	T + 1 Month
4	Implementation of complete solution to UAT including all integrations with various interfaces	T + 4 Months
5	UAT Sign Off	T + 4 Months
6	User Training	T + 4.5 Months
7	Go-Live	T + 5 Months
8	Post Go-Live Support & Final Sign Off	T + 6 Months
9	Deployment of Resources	T + 6 Months

Bidder has to execute Escrow arrangement with the Bank/ Escrow Agent for the safe depositing of the complete source code being supplied along with customizations carried out in the software as per Bank's requirements. Also, to maintain the currency of the version by regularly updating the same with the related upgrades/fixes/patches, a copy of the source code of the application customized for Bank shall be kept in an Escrow account for which all expenses will be borne by bidder. A copy of all subsequent updates to the source code shall also be placed in the said Escrow account.

2.2 Delivery Timelines

Bidder is required to implement the project within the stipulated timelines provided below:

Note:

1. T refers to the date of PO Issuance.
2. The bidder will be responsible for delivering the end-to-end solution and will be the single point of contact for the Bank.

2.3 Service Criteria & Penalties

Bank expects that the Bidder shall be bound by the Service Levels described in this document. Service Levels will include Availability measurements and Performance parameters. Bank requires the Bidder to provide reports for all availability and performance parameters a log of all issues that have been raised and Closed/ Pending Closure by the Bidder. The frequency of these reports would be Weekly, Monthly, Quarterly and Yearly

Timelines Penalty

S No.	Deliverables	SLA	Penalty
1	PO Issuance	T	NIL
2	DRG document along with submission of Design Doc, Solution Doc, Final Implementation Plan, Solution Design, Project Plan, Functional Specification Documents (FSD), Process Flow, System Architecture, Implementation approach, Resource allocation plan	T + 1 Month	Rs 5000 for each day of delay
3	Delivery of Complete Software and Database Licenses including related components (DC, DR, and UAT) as per RFP requirement	T + 1 Month	Rs 10000 for each day of delay
4	Implementation of complete solution to UAT including all integrations with various interfaces	T + 4 Months	Rs 20000 for each day of delay
5	UAT sign off	T + 4 Months	0.5 % of software cost for each week delay or part thereof
6	User Training	T + 4.5 Months	Rs 20000 for each day of delay
7	Go-Live	T + 5 Months	0.5 % of software and implementation cost for each week delay or part thereof
8	Deployment of Resources	Next day from Post Go-live Sign-off.	1% Penalty will be levied on the Quarterly Billing Cost (QBC) of the Resources for each day delay.
9	Replacement of resources in case of release from project from bank side	Within 2 days of notice from bank side	Per day cost of the resource will be deducted as penalty from the QBC.
10	Replacement of resources in case of release from project from bidder side	Immediately	Per day cost of the resource will be deducted as penalty from the QBC.

11	Backup resources in case of leaves of any onsite resource	Immediately	Per day cost of the resource will be deducted as penalty from the QBC.
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**** Penalty will be applicable in case any Deliverable SLA is breached. Bidder will not be penalized in case of any delay is observed from bank's side.**

Implementation Penalty

The selected bidder must adhere to the timelines as stated in the RFP, or as mutually agreed, if not mentioned. Delay in successful implementation of the solution within the stipulated timelines shall attract penalty.

Downtime and Performance Penalty

Description	Uptime	Penalty
Solution as per RFP	>= 99.95%	No Penalty
	>=99.5% and < 99.95%	10% of the total Quarterly Billing
	>= 98.5% and <99.5%	15% of the total Quarterly Billing
	>= 97.5% and <98.5%	20% of the total Quarterly Billing
	>= 95.0% and <97.5%	25% of the total Quarterly Billing
	>= 90.0% and < 95.0%	30% of the total Quarterly Billing
	>= 80.0% and < 90.0%	50% of the total Quarterly Billing
	< 80.0%	100% of the total Quarterly Billing

All Availability and Performance Measurements will be on a monthly basis for the purpose of Service Level reporting.

Service Level Availability is to be measured and reported on a monthly basis by bidder and will be validated by bank. SLA Audits will normally be done on quarterly basis or as required by Bank and will be performed by Bank or Bank appointed third party agencies. The most complex transaction under peak load should be successfully completed within a reasonable time.

Solution availability is defined as: $\{(\text{Scheduled operation time} - \text{system downtime}) / (\text{scheduled operation time})\} * 100\%$

Where:

- A. "Scheduled operation time" means the scheduled operating hours of the System for the month. All planned downtime on the system would be deducted from the total operation time for the month to give the scheduled operation time i.e. 24x7x365. Following will be standard exclusions while calculating availability:
- I. Scheduled Application Service Provider Switch Routine Maintenance within the agreed Scheduled time.
 - II. Scheduled Application Service Provider Upgrades within the agreed Scheduled time.
 - III. Fault of Banks owned Network Equipment.

- IV. Force Majeure cases.
- V. Core Banking Solution Host outages
- VI. Any other cause attributable to Banks infrastructure

- B. "System downtime" subject to the SLA, means accumulated time during which the System is not available to the Bank's users or customers due to in-scope system or infrastructure failure, and measured from the time the Bank and/or its customers log a call with the Bidder help desk of the failure or the failure is known to the Bidder from the availability measurement tools to the time when the System is returned to proper operation. Any denial of service by the bidder to the Bank users and Bank customers would also account as "System downtime".
- C. Downtime shall commence when either the Bidder's solution is not available either through the DC or DR.
- D. Uptime will be computed based on availability of the applications to the Bank's users/customers irrespective of availability of servers (individual server/clusters). Also, non-compliance with performance parameters for business, network and environmental infrastructure and system / service degradation will be considered for downtime calculation.
- E. When any of the solution is rendered Unavailable for any of the above-mentioned reasons, selected bidder will notify the Bank and give clear explanation of the reason for the unscheduled downtime and the expected time for Resumption of service.
- F. In case, the scheduled maintenance cannot be completed within the expected time, vendor will immediately inform the Bank in writing via E-Mail and orally via Mobile / Telephone to the Banks' Designated official. Such extended period may also be considered for downtime calculation.
- G. On Resumption of Service, vendor will within 15 minutes of Resumption of service inform the Bank in writing via E-Mail and orally via Mobile / Telephone to the Banks' Designated official.

**** The bidder shall not be penalized for any SLA breach outside the scope of bidder.**

Incident Resolution

Impact	Description	Priority
Critical	1. Such class of errors will include problems, which prevent users from making operational and functional use of solution.	P1
	2. Any problem due to which the solution is not available to the Bank users or does not perform according to the defined performance and query processing parameters required as per the RFP.	
	3. No work-around or manual process available	
	4. Financial and business impact on Bank	
High	1. Any incident which is not classified as "Critical" for which an acceptable workaround has been provided by the Bidder.	P2
	2. Users face severe functional restrictions in the application irrespective of the cause.	
	3. Key business systems and support services	

Medium	1. Any incident which is not classified as "Critical" and "High Priority" for which an acceptable workaround has been provided by the Bidder.	P3
	2. Moderate functional restrictions in the application irrespective of the cause.	
	3. No impact on processing of normal business activities	
	4. Equipment/system/Applications issues and has no impact on the normal operations/day-to-day working	
Low	1. All other residuary issues not defined in "Critical", "High Priority" and "Medium Priority".	P4
	2. Any issue at Non-production and UAT setup that may impact bank's user business hours.	

SLA of Resolving Incident & Root Cause Analysis Documentation (P1, P2, P3, P4)

Priority	Target Response Time	Target Resolution Time	RCA Report Submission Time (post resolution)	Service Hours
P1	30 minutes	2 hours	48 hours	24x7
P2	60 minutes	5 hours	72 hours	24x7
P3	90 minutes	3 days	96 hours	09:00 – 18:00
P4	90 minutes	5 days	120 hours	09:00 – 18:00

S No.	Description of Issue/Errors	Calculation	Expected SLA	Associated Penalty
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A. Penalty on Incident Response, Resolution, and Root Cause Analysis Report

1. Incident Response	24x7 monitoring of all in-scope solutions. Categorization of events into P1, P2, P3 and P4 shall be carried out in consultation with the bank during the contracting phase.	All Critical, High, Medium, and Low priority incident along with action plan/mitigation should be logged as incident tickets and responded as per below SLAs: 1. P1 incidents within 30 minutes of the incident being identified/ notified. Update should be provided every 30 minutes till the closure of the incident. 2. P2 incidents within 60 minutes of the incidents being identified/ notified. Update should be provided every 1 hour till the closure of the incident. 3. P3 incidents within 90 minutes of the incidents being identified/ notified. Update should be provided every 4 hours till the closure of the incident. 4. P4 incidents within 90 minutes of the incidents being identified/ notified. Update should be provided everyday till the closure of the incident.
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Quarterly Billing Cost (QBC) =
Total Billing Cost for the quarter

Penalty:

SLA is measured on a Quarterly basis and the penalty is as follows:

P1 Incidents:

1. No response within 30 min = 1% of QBC
2. No response within 2 hours = 2% of QBC. On every subsequent delay of 1 hour beyond 2 hours, additional 1% of QBC

P2 Incidents:

1. No response within 60 min = 1% of QBC
2. No response within 3 hours = 2% of QBC. On every subsequent delay of 1 hour beyond 3 hours, additional 1% of QBC

P3 Incidents:

1. No response within 90 min = 1% of QBC
2. No response within 4 hours = 2% of QBC. On every subsequent delay of 2 hours beyond 4 hours, additional 1% of QBC

P4 Incidents:

1. No response within 90 min = 1% of QBC
2. No response within 4 hours = 2% of QBC. On every subsequent delay of 4 hours beyond 4 hours, additional 1% of QBC

The timelines required for resolution of Critical, High, Medium, and Low priority mentioned below:

- **P1 incidents** within 2 hours of the incident identification. Update should be provided every 30 minutes till the closure of the incident.
- **P2 incidents** within 5 hours of the event identification. Update should be provided every 1 hour till the closure of the incident.
- **P3 incidents** within 3 days of the event identification. Update should be provided every 4 hours till the closure of the incident.
- **P4 incidents** within 5 days of the event identification

Quarterly Billing Cost (QBC) =
Total Billing Cost for the quarter

2. Incident
Resolution

Response and
resolution of the
identified incidents.

Penalty:

- Any violation in meeting the SLA requirements which leads to P1 incident, bank shall impose a penalty 1% of the QBC for each 30 minutes delay up to 2 hours or part thereof, beyond 2 hours penalty would be 2% of the overall QBC for each 30 minutes delay or part thereof.
- Any violation in meeting the SLA requirements which leads to P2 incident, bank shall impose a penalty of 1% of QBC for each 60 minutes delay up to 5 hours or part thereof, beyond 5 hours penalty would be 2% of the overall QBC for each 60 minutes delay or part thereof.
- Any violation in meeting the SLA requirements which leads to P3 incident, bank shall impose a penalty of 1% of QBC for each 12 hours delay up to 2 days or part thereof, beyond 2 days penalty would be 2% of the overall QBC for each 90 minutes delay or part thereof.
- Any violation in meeting the SLA requirements which leads to P4 incident, bank shall impose a penalty of 1% of the QBC for each subsequent 1-day delay or part thereof.

B. Delay in resolution of new deployment issues.

Production	Manually	One Roll Back per quarter due to issue at bidder side	For more than 1 roll back per quarter with deployment or part thereof, penalty will be charged
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at 1% of the quarterly billing for each roll back.

C.	Hardware Utilization	The average daily utilization of hardware (CPU, memory, storage) 70% and below during business hours should not exceed 70%.	If more than 5 hours beyond 70% utilisation, then the bidder will be penalised 1% of the TCO for each instance.
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DR Switchover

DR switchover from DC site to be done within 30 mins, in case of failover of DC or decided by bank. Else it will attract penalty of Rs. 5,000 per hour or part thereof. However, this may be waived in case of bidder has provided proper justification or delay/ dependency from bank side, if any.

New/ Additional CR and Customization

Type of Customization	SLA for UAT deployment with all functionalities and handing over to bank	Penalty amount
Minor (where required man-days are below 15)	15 days	1 Man-day rate for each day of delay
Regulatory changes	Stated by regulatory bodies/ agreed with bank	

**Any Customization where required efforts are greater than 15 man-days, Bank will provide a CR for the same.

Audit Observations

1. The Bidder must ensure that the observations raised by the bank/auditor is completed in agreed timelines with the bank. Any such non-compliance by Bidder shall attract penalty of Rs 20000 per observation not fixed.
2. The Bidder must ensure that the observations raised by the bank/auditor do not get repeated in subsequent audits. Any such non-compliance by Bidder shall attract penalty of Rs 20000 per observation not fixed.
3. The bidder must ensure that the data asked by any auditor is provided in the stipulated timelines. Any such non-compliance by Bidder shall attract penalty of Rs 20000 per day.

Proposed Inaccurate Hardware sizing

The Bidder must ensure that the proposed detailed specifications for hardware should meet the current transaction load of the bank. In case of inaccurate sizing, bidder shall attract a penalty of 1% of the TCO.

Requests not responded within the TAT

The Bidder must ensure that all the requests are responded within the Turnaround Time (TAT) defined by the Bank/I4C. In case of failure to do the same, a penalty of Rs 500 per request will be charged to the bidder.

Note:

1. Penalty will be applicable in case any Deliverable SLA is breached. Bidder will not be penalized in case of any delay is observed from bank's side.
2. The bidder shall not be penalized for any SLA breach outside the scope of bidder.
3. For calculation of delays the time at server(s) for Bank will be taken as Final.
4. The Bank reserves the right to deduct such penalty amount from any amount payable to the bidder by the Bank or quarterly billing amount due to the bidder including invoking of the Performance Guarantee.
5. Other than the above, if any data breach, data loss incurred from bidder's facility, System, Integrated Channels, Network infrastructure, connectivity, non-compliance of guidelines or the actual loss incurred by the Bank, penalties levied by the Statutory authorities, RBI on account- of deficiency of service /law shall be passed on to the Bidder with no cap value.
6. Penalty as mentioned above can be levied simultaneously. Maximum deducted penalty of one type will not affect any other type of penalty i.e. All types of penalties can be levied up to their maximum limit simultaneously.
7. Delivery of goods and performance of Services shall be made by the bidder/ supplier in accordance with the time schedule specified by Bank. In cases of habitual / frequent delay, Bank may consider invocation of the bank guarantee or may even consider termination of contract of the bidder.
8. Any financial loss / fraud taking place due to the bidder's negligence shall be recoverable from the bidder along with damages if any with regard to Bank's reputation and goodwill.
9. If at any point of time, during an audit or in case of a complaint regarding the proposed solution is substantiated, 10% penalty will be levied on quarterly billing invoice raised. Bank reserves the right to cancel the contract with immediate effect, withhold any payments due and forfeit amount of Performance Bank Guarantee.
10. If performance issues continue for more than two months due to any reason at application/solution side, bank may choose any or all the options like Review the contract, Cancel the GeM Contract, Terminate the Contract, Forfeit the Performance Bank Guarantee and may Blacklist the bidder.
11. SLA will be monitored on Monthly basis. Penalty due to downtime/service unavailability/disruption and any clauses mentioned above during contract period will be deducted from any subsequent payment to be made to the bidder.

Bank will also impose the appropriate penalty on the bidder for incidents like any lapses to the System Security, any kind of reputational losses or damages suffered by the bank due to selected bidder. Penalty is not applicable for reasons attributable to the Bank and Force Majeure. However, it is the responsibility of the bidder to prove that the delay is attributed to the Bank and/or Force Majeure.

2.4 Schedule B - Payment Terms

Bank has defined in-scope services and corresponding service levels above. Each service level shall be measured monthly through mutually agreed mechanism. Vendor shall provide, as part of monthly evaluation process, reports to verify vendor's performance and compliance with the service levels.

Below are the payment terms that will be applicable during the contract period:

The bidder must accept the payment terms proposed by the Bank. The financial offer submitted by the bidder must be in conformity with the payment terms proposed by the Bank. Any deviation from the proposed payment terms would not be accepted.

All payments invoices should be submitted with of all relevant documents and proofs. Original copy of the Invoice (with Certified Photocopy) showing relevant details like Contract No., Solution Description, Quantity, Unit Price, Total Amount, etc.

S No.	Project Milestone	Software License Cost	Implementation Cost
1	Delivery of Complete Software & Database Licenses including related components at DC, DR, and UAT as per RFP requirement	50%	-
2	Implementation of complete solution to UAT including all integrations with various interfaces	20%	30%
3	UAT Sign Off	10%	30%
4	Go-Live	10%	30%
5	Post Go-Live Support & Final Sign Off	10%	10%
	Total	100%	100%
6	Resource Cost	100% of the eligible amount will be paid in quarterly arrears.	
7	Annual Technical Support (ATS)	100% of the eligible amount will be paid in quarterly arrears. **ATS shall commence on completion of warranty period	

Note:

- The vendor will submit the cost details in the specified format mentioned in the Financial Bid Format – Annexure 9 of this document. Vendor will be paid in quarterly arrear basis after the invoice submission.
- All payments will be made to the vendor in Indian Rupee only.
- The payments will be released through NEFT/RTGS, and the Selected Bidder has to provide necessary Bank Details like Account No., Bank's Name with Branch, IFSC Code etc. Applicable TDS, if any, will be deducted at the time of releasing the payments. All the systems shall be properly maintained irrespective of Non-claiming/Nonrenewal of maintenance charges by vendor in time. Failure of the Selected Bidder to comply with the requirement of executing Contract shall constitute sufficient grounds for annulment of award and forfeiture of Bid Security.

Partial Payments will be allowed for One Time Implementation Fee and Man-Days Customisation. However, this will be sole discretion of bank basis justification provided by the bidder

2.5 Eligibility Criteria

To be considered for selection by the Bank, the bidders should meet the eligibility criteria as mentioned in [Annexure 3 – Eligibility Criteria Compliance](#) to participate in bidding process. Only those bidders, who satisfy all the eligibility criteria as mentioned in the annexure, may respond. Document in support of all eligibility criteria is required to be submitted along with the Bid. Offers received from the bidders who do not fulfil any of the eligibility criteria are liable to be rejected. Any decision of Bank in this regard shall be final, conclusive, and binding upon the bidder.

Documentary evidence must be furnished against each of the criteria along with an index. All documents must be signed by the authorized signatory of the Bidder. Relevant portions, in the documents submitted in pursuance of eligibility criteria, should be highlighted.

2.6 Bid Submission Process

1. Documents for Technical Bid

Interested and eligible bidders may submit their proposal in the prescribed format (enclosed here) with complete information. The proposal duly filled in, along with all supporting document(s) / information should be submitted to the bank through the GEM Portal.

2. Documents for Financial Bid

The bidder shall submit the Financial bid as per the format given in [Annexure 9 – Financial Bid Format](#).

A masked [Annexure 9 – Financial Bid Format](#) should be submitted in technical offer.

The Financial Offer should give all relevant price information as per the Financial bid format and should not contradict the Technical Bid document in any manner. If any bidder submits price bid is part -1, their bid will be summarily rejected" & "Post completion of RA, the L1 bidder has to mandatorily submit revised price break to IPPB in line with price bid annexure.

2.7 Bid Evaluation

• Opening of RFP

Bids received shall be opened online at the specified date and time given in GeM Bid document. If the office is closed on the specified date of opening of the bids, the opening shall be done on the next working day at the same time

• Shortlisting of bidders Technical Evaluation

1. The bank will evaluate the bidders based on:

For bids received within the prescribed closing date and time, the Technical Bids will be opened online on GeM portal.

Price bids of only those bidders will be opened who have qualified in Part -1 evaluation of bid. Price bids will be opened online on GEM.

- A. First of all, the RFP Cost and EMD of all bidders will be verified. If any RFP Cost / EMD / Bid security declaration is not found in order, that bidder will be declared ineligible for further participating in the tender process.

- B. The Bank may, at its discretion, waive any minor non-conformities or any minor irregularity in the proposal. This shall be binding on all bidders and the Bank reserves the right for such waivers.
- C. The Bank reserves its right to accept or reject any or all Bids, abandon/ cancel the Tender process, and issue another tender for the same or similar requirements at any time before the award of the contract. It would have no liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for such action(s).
- D. During pre-qualification and evaluation of the proposals, Bank may, at its discretion, ask respondents for clarifications on their proposal. The respondents are required to respond within the time frame prescribed by IPPB. Respondents are not permitted to modify, substitute or withdraw proposals after its submission. IN case the OEM is participating in the bid directly, the bids of its authorized resellers will not be considered.
- E. The Bank reserves the right to check / validate the authenticity of the information provided in the eligibility and technical evaluation criteria and requisite support must be provided by the bidder. The Bank may ask for queries on each of the criteria wherein the bidder needs to response within stipulated timelines.
- F. Demonstration and Capability Presentation - If required, the bank may ask the bidder to arrange for the demonstration and presentation of the offered products and how the project will be carried out by the bidder. The Bank may ask the bidder to provide the presentation (overall presentation or to cover up any specific area during the presentation).

- **Disqualification of Bids**

- 1. The bids are liable to be disqualified in the following cases or in case bidder fails to meet the bidding requirements as indicated in this Tender document.
- 2. During validity of the bid, or its extended period, if any, the bidder increases its quoted prices.
- 3. The bidder's bid is conditional and has deviations from the terms and conditions of the Tender.
- 4. Bid is received in incomplete form.
- 5. Bid is not accompanied by all the requisite documents.
- 6. Information submitted in technical bid is found to be misrepresented, incorrect or false, accidentally, unwittingly, or otherwise, at any time prior to signing of the contract.
- 7. Bidder tries to influence the bid evaluation process by unlawful/corrupt/fraudulent means at any point of time during the bid process.
- 8. If common interests are found in two or more bidders, the bidders are likely to be disqualified, unless additional bids/bidders are withdrawn upon notice immediately.

3. Part – C – Annexures

3.1 Document Checklist

S. No.	Document Description	Submitted (Yes / No)
1.	Duly signed and stamped as a token of acceptance of terms and conditions of RFP: 1. GEM Bid document 2. RFP document (Scope of work, Delivery timelines, SLAs & Penalty, Payment terms, Price Breakup/ BoQ (Masked), General terms, Termination & Exit Management, Master Service Agreement, duly filled Integrity Pact, All applicable annexures.) 3. The issue of any corrigendum (including GEM Corrigendum), reply of prebid queries.	
2.	Duly filled Annexure 1 – Conformity Letter	
3.	Duly filled Annexure – 2 Bid Security Declaration	
4.	Dully filled Annexure 3 – Eligibility Criteria Compliance along with supporting documents	
5.	Duly filled Annexure 4 – Bidder Details	
6.	Duly filled Annexure 5 – Bidder Response Cover Letter	
7.	Duly filled Annexure 6 – Past Experience along with the supporting documents	
8.	Duly filled Annexure 7 – Self-Declaration	
9.	Duly filled Annexure 8 – Power of Attorney for signing of application	
10.	Duly filled Annexure 9 – Financial Bid Format – Masked	
11.	Duly signed & stamped Annexure 10 – Bank Guarantee format for Earnest Money Deposit – If applicable	
12.	Duly signed & stamped Annexure 11 – Bank Guarantee for Performance Guarantee	
13.	Duly filled Annexure – 12 Certificate of Local Content	
14.	Duly signed & stamped Annexure 13 – Integrity Pact	
15.	Duly signed & stamped Annexure 14 – Non-Disclosure Agreement	
16.	Duly signed & stamped Annexure 15 – Master Service Agreement	

17.	Duly signed & stamped Annexure 16 – Declaration on absence of Conflict of Interest	
18.	Duly filled Annexure 17 – Technical Compliance Sheet along with supporting documents	
19.	Duly Filled Annexure 18 - Self Declaration for Compliance to RBI Master Direction on Outsourcing of IT Services	
20.	Duly Filled Annexure- 19 Escalation matrix	
21.	Annexure- 20 API Samples	
22.	Duly Filled Annexure- 21 Pre-Bid Meeting Query Format	
23.	Duly Filled Annexure- 22 Authorization letter for Pre-Bid Meeting	
24.	Duly Filled Annexure 23 – Undertaking under Rule 144 (xi)	
25.	Self-declaration letter to be submitted by bidder on bidder's letterhead signed by authorised signatory along with details of stringent data security that will be implemented.	
26.	Self-declaration to be submitted by bidder on bidder's letterhead signed by authorised signatory mentioning that application provided for incident management has the capability to capture the raw data details for the requests such as timings, priority, comments for any issues.	

3.2 Annexure 1 - Conformity Letter

(To be submitted on company letterhead)

To,
The MD & CEO,
India Post Payments Bank
2nd Floor, Speed Post Centre Building,
Bhai Veer Singh Marg, Gole Market, New Delhi – 110 001.

Sir,

Sub: - Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

Further to our proposal dated DD.MM.YYYY, in response to the RFP document (hereafter referred to as "RFP DOCUMENT") issued by India Post Payments Bank ("Bank") we hereby warrant and confirm that:

1. We hereby agree to comply with all the terms and conditions / stipulations as contained in the RFP document and the addendum issued (if any) including the changes made to the original documents issued by the bank, provided however that only the list of deviations furnished by us in [Annexure 7 – Comments on Terms and Conditions](#) of the RFP of the main RFP document which are expressly accepted by the bank and communicated to us in writing, shall form a valid and binding part of the aforesaid RFP document.
2. The bank is not bound by any other extraneous matters or deviations, even if mentioned by us elsewhere either in our proposal or any subsequent deviations sought by us, whether orally or in writing, and the bank's decision not to accept any such extraneous conditions and deviations will be final and binding on us.

Yours faithfully

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.3 Annexure 2 - Bid Security Declaration

(To be submitted on Bidder Letter Head)

Date:

To,
The MD & CEO,
India Post Payments Bank
2nd Floor, Speed Post Centre Building,
Bhai Veer Singh Marg, Gole Market, New Delhi – 110 001.

Sub: Bid Security Declaration – regarding Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

Ref : Tender document No. _____ dated _____

We, the undersigned declare that:

1. We know that the bid should be supported by a Bid Security Declaration in accordance with the RFP conditions.
2. We accept to automatically be suspended from being eligible for bidding in any contract in India Post Payments Banks for a period as decided by bank from the date of opening of Bid if we are in breach of our obligation(s) under the bid conditions, because we:

After having been notified of the acceptance of our bid by the Contracting Authority within the period of bid validity:

- a. We failed or refused to furnish a Performance Security in accordance with the Condition of the Tender Document of Tender No. _____

OR

- b. We failed or refused to sign the contract.

3. We know that this Bid-Securing Declaration will expire, if contract is not awarded to us, upon:

- a. Our receipt of your notification to us of the name of the successful bidder or
- b. Thirty days after the expiration of our Bid or any extension to it

4. We know if we are a Joint Venture, Securing Declaration should be in the name of the JV submitting the bid. If the JV is not legally constituted at the time of bidding, the Bid-Securing Declaration will be in the name of all partners named in the JV agreement.

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.4 Annexure 3 - Eligibility Criteria Compliance

S. No.	Eligibility Criteria	Documents in support
1.	Bidder should be Proprietorship / Registered Partnership Firm / Limited Liability Partnership / Private Limited / Limited company / Society registered under Society's Act / Statutory Bodies registered with the relevant authority and should be in existence for a minimum period of 5 (Five) financial years as on due date of bid submission . Even in case the due date of bid submission is extended, the original due date of bid submission will be considered as reference date for the purpose of this experience criteria.	a. Certificate of Incorporation to be submitted in case of LLP / Private / Public limited companies as per the Company act 1956/ 2013. b. The copies of Memorandum of Association and Articles of Association are required to be submitted along with the technical bid for the LLP / Private / Public limited companies as per the Company act 1956/ 2023. c. Registered Partnership Agreement to be submitted in case of partnership firms. d. PAN and GSTIN Certificate and any other tax related document if applicable.
2.	Bidder to submit undertaking for Blacklisting and other clauses as per applicable annexure, as on the date of RFP submission. If any issue comes to the notice of the Bank at a later date that bidder has submitted false undertaking, Bank will be free to revoke the contract entered with the selected bidder and invoke bank guarantee at its discretion.	Bidder has to submit a Declaration in the format as mentioned in the Annexure V – Self-Declaration of this RFP document.
3.	The OEM/ Bidder need to specify their Class and country of Origin of quoted product as per the Make in India Guidelines.	Certificate as per Annexure XII – Certificate of Local Content
4.	The bidder has to submit Integrity Pact (IP) signed by authorized signatory as prescribed format mentioned on plain paper. Bids shall be liable for rejection in case of non-submission of the same.	Bidder has to submit the Integrity Pact in the format as mentioned in the Annexure XI – Integrity Pact of this RFP document.
5.	Bidder should sign & submit Non-Disclosure Agreement and MSA	"Only successful bidder should sign & submit Non-Disclosure Agreement and MSA as per annexure attached on Stamp paper. All bidder along with bid must submit undertaking on their letter head through authorized signatory stating that ""If successful, we(bidder) will be submit NDA and MSA as per

Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank

		attached Annexure Format as per bid document on stamp paper without any deviation". "
6.	The Bidder must have a minimum annual turnover of Rs. 2.00 Crores during the immediately two preceding years ie FY 2024-25 and 2023-24. This must be the individual company turnover and not that of any group of companies.	a. Copy of the audited Balance Sheet of the bidder FY 2023-24 and 2024-25. OR b. CA Certificate mentioning the Turnover of the bidder for the three financial years. The CA certificate to clearly mention the UDIN number.
7.	The Bidder must have a positive net worth during the immediately two preceding years ie FY 2024-25 and 2023-24.	Copy of the audited Balance Sheet for FYs FY 2023-24 and 2024-25. & CA Certificate mentioning the Networth of the bidder for the last three financial years. The CA certificate to clearly mention the UDIN number
8.	The bidder should have Support center in India	List/Details of technical support centers in India with complete addresses and contact number to be provided by along with bid
9.	The bidder must have experience of successful development, deployment and integration of at least one platform having at least one or more APIs or straight through processes with banks/NBFCs/Insurance companies / government departments/ PSU. The value of at least one PO should be at least Rs 50 lakhs including GST. The date of PO shall be within 5 years as on date on original date of submission of bid.	a. Copies of relevant Purchase Order(s) / Contract(s). The Purchase order should have been issued within the last 5 years as on bid submission date b. Completion Certificate(s) to be submitted along with bid for the successful implementation. If the project is not completed, then communication from client regarding the satisfactory performance as on date. The Purchase order / Contract / Completion certificate should clearly mention the name of the proposed solution.
10.	The bidder must have successfully implemented solution that integrates with Core Banking / Operating(transactional) Software for at least one bank/NBFCs/Insurance companies in India.	Copies of relevant Purchase Order(s) / Contract(s) The Purchase order / Contract should clearly mention that integration with Finacle Core banking solution. & Completion Certificate(s) to be submitted along with bid for the successful implementation.
11.	The Bidder should have at least one of the below mentioned certificate which is valid as on date of RFP submission. ISO-27001-2013 ISO20000-1-2018 CMMI Level 3 or above ISO 9001-2015	Self-attested copy of the certificates.

12.	Bidder should have minimum 20 Technical resources (Application Developer) with 2 years prior working experience of development and customization on its Payroll as on the date of publishing of bid.	Self-Declaration signed by HR Head along with the resumes of the resources.
------------	--	---

Wherever, the reference date is mentioned as submission date in the above eligibility criteria or elsewhere in the tender document, the "original" date & time of bid submission to be taken as considered by bidder for the same.

3.5 Annexure 4 - Bidder Details

(To be submitted in this format only)

To,

The MD & CEO,

India Post Payments Bank

2nd Floor, Speed Post Centre Building,

Bhai Veer Singh Marg, Gole Market, New Delhi – 110 001.

Sub: - Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

S. No.	Required Details	Response
General Details		
1.	Name of Company / Bidder / Organisation	
2.	CIN / Registration No	
3.	Registered office Address	
4.	Telephone, Fax Number, Email Address	
5.	Name, address and telephone number, Email id of the Authorized Signatory at your organization for this proposal	

Declaration:

I hereby declare that I / We have verified the details indicated above and also confirm that all the Information submitted is true to the best of my knowledge.

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.6 Annexure 5 - Bidder Response Cover Letter

(To be submitted on company letterhead)

To,

The MD & CEO,

India Post Payments Bank

, 2nd Floor, Speed Post Centre Building,

Bhai Veer Singh Marg, Gole Market, New Delhi – 110 001.

Sub: - Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

Dear Sir,

1. Having examined the requirement and Scope Documents including all Annexures / Appendices, the receipt of which is hereby duly acknowledged, we, the undersigned offer to provide our bids as mentioned in the 'Request for Proposal' and the other schedules of requirements and services for your bank in conformity with the said Scope Documents.
2. If our Bid is accepted, we undertake to abide by all terms and conditions of this Scope document.
3. We agree to abide by this Scope Offer for **180 days** from last date of submission of bid (Due Date) and our Offer shall remain binding on us and may be accepted by the bank any time before expiry of the offer.
4. This Bid, together with your written acceptance thereof, shall constitute a binding Contract between us.
5. We undertake that in competing for and if the work is allocated to us, in executing the subject Contract, we will strictly observe the laws against fraud and corruption in force in India namely 'Prevention of Corruption Act, 1988', and other relevant statutes in this regard.
6. We certify that we have provided all the information requested by the bank in the format requested for. We also understand that the bank has the exclusive right to reject this bid in case the bank is of the opinion that the required information is not provided or is provided in a different format.

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.7 Annexure 6 - Past Experience

S. No.	Name of Organization	Brief details of scope of work	Details of Project	Name of person in- charge from client side with contact no. and email id	Period	
					From	To

Note: Appointment letter/Client letter/Contract with Client / Completion certificate in support of the information above should be submitted.

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.8 Annexure 7 - Self-Declaration

(To be submitted on Bidder's letterhead)

Date:

I, on behalf of _____ <Bidder's Name> _____ (Including our affiliates or subsidiaries or Contractors/
subcontractors for any part of the contract) declare the following:

- i. We are not declared insolvent, in receivership, bankrupt or being wound up, not have our affairs administered by a court or a judicial officer, not have our business activities suspended and are not the subject of legal proceedings for any of aforesaid reasons;
- ii. We are not declared ineligible/ blacklisted/ banned/ debarred by India Post Payments Bank or its Ministry/ Department from participation in its Tender Processes;
- iii. We are not convicted (within three years preceding the last date of bid submission) or declared ineligible/ suspended/ blacklisted/ banned/ debarred by appropriate agencies of Government of India from participation in Tender Processes of all of its entities, for:
 - a. offences involving moral turpitude in business dealings under the Prevention of Corruption Act, 1988 or any other law; and/or
 - b. offences under the Indian Penal Code or any other law for causing any loss of life/ limbs/ property or endangering Public Health during the execution of a public procurement contract and/or
 - c. suspected to be or of doubtful loyalty to the Country or a National Security risk as determined by appropriate agencies of the Government of India.
- iv. We have not changed our name or created a new "Allied Firm", consequent to having declared ineligible/ suspended/ blacklisted/ banned/ debarred as above.
- v. We do not have an association (as a bidder/ partner/ director/ employee in any capacity)
 - a. of any retired Manager (of Gazetted Rank) or any retired Gazetted Officer of the Central or State Government or its Public Sector Undertakings if such a retired person has not completed the cooling-off period of one year after his retirement. However, this shall not apply if such managers/ officers have obtained a waiver of the cooling-off period from their erstwhile organisation.
 - b. of the near relations of executives of Procuring Entity involved in this Tender Process
- vi. We do not have a conflict of interest, which substantially affects fair competition.
- vii. We declare that there are no legal proceedings/ inquiries/ investigations commenced/ pending against us by any statutory or regulatory or investigative agencies, for which performance under the contract will get adversely affected / may get affected.
- viii. We are not in the negative/ caution repository of vendors published by IBA (Indian Banks Association)

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.9 Annexure 8 - Power of Attorney for signing of application

(To be submitted on a INR 100 Stamp Paper only)

Know all men by these presents, we..... (name of the firm and address of the registered office) do hereby irrevocably constitute, nominate, appoint and authorize Mr/ Ms (name), son/daughter/wife of and presently residing at, who is presently employed with us (the "Bidder") and holding the position of, as our true and lawful attorney (hereinafter referred to as the "Attorney") to do in our name and on our behalf, all such acts, deeds and things as are necessary or required in connection with or incidental to submission of our application for pre-qualification and submission of our bid for the ***** Project proposed or being developed by the ***** (the "Authority") including but not limited to signing and submission of all applications, bids and other documents and writings, participate in pre-applications and other conferences and providing information/ responses to the Authority, representing us in all matters before the Authority, signing and execution of all contracts and undertakings consequent to acceptance of our bid, and generally dealing with the Authority in all matters in connection with or relating to or arising out of our bid for the said engagement and/ or upon award thereof to us and/or till the entering into of the agreement with the Authority.

AND we hereby agree to ratify and confirm and do hereby ratify and confirm all acts, deeds and things done or caused to be done by our said Attorney pursuant to and in exercise of the powers conferred by this Power of Attorney and that all acts, deeds and things done by our said Attorney in exercise of the powers hereby conferred shall and shall always be deemed to have been done by us.

IN WITNESS WHEREOF WE,, THE ABOVE-NAMED PRINCIPAL HAVE EXECUTED THIS POWER OF ATTORNEY ON THIS DAY OF 2.....

For

Authorized Signature:

Authorized Signatory Name:

Title of Signatory:

Address:

Witnesses:

- 1.
- 2.

Accepted:

Attorney's Signature:

Attorney's Name:

Attorney's Title:

Address:

Notes:

The mode of execution of the Power of Attorney should be in accordance with the procedure, if any, laid down by the applicable law and the charter documents of the executant(s) and when it is so required, the same should be under common seal affixed in accordance with the required procedure.

Wherever required, the Applicant should submit for verification the extract of the charter documents and documents such as a board or shareholders' resolution/ power of attorney in favour of the person executing this Power of Attorney for the delegation of power hereunder on behalf of the Applicant.

For a Power of Attorney executed and issued overseas, the document will also have to be legalized by the Indian Embassy and notarized in the jurisdiction where the Power of Attorney is being issued.

However, the Power of Attorney provided by Applicants from countries that have signed the Hague Legislation Convention 1961 are not required to be legalized by the Indian Embassy if it carries a conforming Apostille certificate.

3.10 Annexure 9 - Financial Bid Format

RFP # XXXXXX Dated XX-XX-XXXX

Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank

(Please DO NOT SUBMIT this FILLED ANNEXURE in the technical bid document. If any bidder submits the Financials along with the technical then the bid will be REJECTED and bidder will be DISQUALIFIED and the successful L1 bidder has to mandatorily submit revised price break to IPPB in line with price bid annexure)

S NO	Description	Total Amount for Five years	Taxes (%)	Tax Amount	Total Amount for Five years including Taxes
1	TCO of Table 1a				
2	TCO of Table 1b				
3	TCO of Table 2a				
4	TCO of Table 2b				
5	TCO of Table 3				
6	TCO of Table 4				
7	TCO of Table 5				
Total Cost of Ownership in Figures.					
Total cost of Ownership in Words.					

Note:

1. All monetary figures are to be quoted in Indian Rupees (INR) only.
2. The prices, once offered, must remain firm and must not be subject to escalation for any reason within the period of validity. The price would be inclusive of all applicable taxes under the Indian law like GST, customs duty, excise duty, import taxes, freight, forwarding, insurance, delivery, etc. GST shall be paid / reimbursed on actual basis on production of bills. Any increase in these taxes will be paid in actuals by the bank or any new tax introduced by the government will also be paid by the bank. The entire benefits / advantages, arising out of fall in prices, taxes, duties or any other reason, must be passed on to Bank.
3. No other charges other than as mentioned above shall be payable to the Service Provider.
4. The Bidder is responsible for all the arithmetic computation & price flows. Bank is not responsible for any errors in computation by the bidder.
5. In case a quarterly cost is supposed to be arrived basis an annual cost quoted by the bidder, the quarterly cost would be equal to annual cost / 4 (annual cost divided by 4).
6. In case a monthly cost is supposed to be arrived basis an annual cost quoted by the bidder, the monthly cost would be equal to annual cost / 12 (annual cost divided by 12)

TCO of Table 1a

S NO	Description	Details of the proposed Hardware	Hardware Cost with 3 Years Warranty		
			Quantity	UNIT	Total Amount
1	Total Hardware Cost including all other required components for complete solution at DC and DR in HA and UAT at DC				
2	Any other (Please specify)				
	Grand Total				₹ 0.00

TCO of Table 1b

S NO	Description	Qty	Year 4	Year 5
			Total Amount	Total Amount
1	Total Hardware AMC Cost including all other required components for complete solution at DC and DR in HA and UAT at DC			
2	Any other (Please specify)			
	Total		₹ 0.00	₹ 0.00
	Grand Total		₹ 0.00	

TCO of Table 2a

S NO	Description	Details of the proposed Software	Software Licensing Cost with 1 Year Warranty		
			Quantity	UNIT	Total Amount
1	Total Software & Licenses Cost including all other required licenses for complete solution at DC and DR in HA and UAT at DC				
2	Any other (Please specify)				
3	Any other (Please specify)				
	Grand Total				₹ 0.00

TCO of Table 2b

			Year 2	Year 3	Year 4	Year 5
S NO	Description	Qty	Total Amount	Total Amount	Total Amount	Total Amount
1	ATS Cost of Software including all other required licenses for complete solution at DC and DR in HA and UAT at DC					
2	Any other (Please specify)					
3	Any other (Please specify)					
	Total		₹ 0.00	₹ 0.00	₹ 0.00	₹ 0.00
	Grand Total		₹ 0.00			

TCO of Table 3

S NO	Description	Quantity	UNIT Price	Total Amount
1	Installation, Implementation, Integration cost for DC, DR & UAT	1		
2	Any other (Please specify)			
3	Any other (Please specify)			
	Grand Total			₹ 0.00

TCO of Table 4

			YEAR 1				YEAR 2				YEAR 3				YEAR 4				YEAR 5				
SNO	Description	Minimum Year(s) of Experience	No. of Resource per shift (a)	No. of Shifts (b)	Rate per resource per shift (INR) (c)	Total Amount (INR)(d=a*b*c)	No. of Resource per shift (a)	No. of Shifts (b)	Rate per resource per shift (INR) (c)	Total Amount (INR)(d=a*b*c)	No. of Resource per shift (a)	No. of Shifts (b)	Rate per resource per shift (INR) (c)	Total Amount (INR)(d=a*b*c)	No. of Resource per shift (a)	No. of Shifts (b)	Rate per resource per shift (INR) (c)	Total Amount (INR)(d=a*b*c)	No. of Resource per shift (a)	No. of Shifts (b)	Rate per resource per shift (INR) (c)	Total Amount (INR)(d=a*b*c)	Total Amount for 5 years (INR)
	Bidder Onsite Resources																						
1	Resource- L1	1 or more years	1	3			1	3			1	3			1	3			1	3			
2	Grand Total																						

TCO of Table 5

			Year1		Year2		Year3		Year4		Year5		
SNO	Description	QTY	Manday Cost	Total Amount (INR)(d=a*b*c)	Manday Cost	Total Amount (INR)(d=a*b*c)	Manday Cost	Total Amount (INR)(d=a*b*c)	Manday Cost	Total Amount (INR)(d=a*b*c)	Manday Cost	Total Amount (INR)(d=a*b*c)	Total Amount for 5 years (INR)
1	Mandays Customization Cost	200											
2	Grand Total												

Note:

- The bidders will be required to submit the Total Cost for 5 years on the GEM portal.
- TCO must be quoted in Indian Rupees and in WORDS AND FIGURES inclusive of taxes.

3. Prices are inclusive of applicable Taxes i.e., GST (CGST/SGST/IGST).
4. Bidder has to ensure that the Year-on-Year Cost should not have a variation of more than 10%.
5. ATS for software and AMC for hardware must be in the range of 8-10% and 20-22% respectively. Any non-compliance to this will lead to the disqualification of the bid.
6. Bank will not pay any additional charges other than those mentioned above whatsoever the case may be.
7. Bank will place the purchase order (GeM Contract) as per its requirement.
8. Payment will be made as per the payment terms mentioned in this RFP.
9. Price taken for Man-days Customization cost in above table is for price discovery only.
10. Bank will pay for any additional man-days based on the actual number utilized, at the pre-determined rates.
11. Bank reserves the right to increase or decrease the number of resources based on the requirement.
12. In case bank want to avail more resources in future, same will be deployed at the rates quoted by the bidder in the table 3 of Financial bid format.
13. Any column left blank will result in the disqualification of the bidder.

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.11 Annexure 10 - Bank Guarantee Format for Earnest Money Deposit (Not Applicable for this bid)

BANK GUARANTEE FOR EMD

(To be Stamped in accordance with Stamp Act)

(The BG for EMD to be valid for a period of 180 days from the date of Submission of the bid)

The non-judicial stamp paper should be in the name of issuing Bank

Ref..... Bank Guarantee No.....

Date.....

To

India Post Payments Bank

Post Office

Speed Post Centre Building

Market Road

New Delhi – 110001

India

Dear Sirs,

1. In accordance with Invitation to Bid under your Reference No....., M/s....., having its Registered / Head Office at..... (hereinafter called the 'Bidder') wish to participate in the said Bid or..... and you, as a special favour have agreed to accept an irrevocable and unconditional Bank Guarantee for an amount of..... valid upto on behalf of Bidder in lieu of the Bid deposit required to be made by the Bidder, as a condition precedent for participation in the said Bid.

2. We, the Bank at (local address) having our Head office at guarantee and undertake to pay immediately on demand by India Post Payments Bank, the amount of Rs.

..... (in words & figures) without any reservation, protest, demur and recourse. Any such demand made by the valid holder of this Guarantee shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder.

3. This guarantee will not be discharged due to the change in the constitution of the issuing Bank or the Supplier(s)/Service Provider(s).

4. Notwithstanding anything contained hereinabove:

(1) Our liability under this guarantee is limited to Rs. (in words & figures).

(2) This Bank Guarantee will be valid up to; and

(3) We are liable to pay the guarantee amount or any part thereof under this Bank Guarantee only upon service of a written claim or demand by you on or before

In witness whereof the Bank, through its authorised officer, has set its hand and stamp on this.....day of.....20.....at.....

WITNESS

.....	
(Signature)	(Signature)
.....	
(Name)	(Name)
.....	
(Official Address)	(Designation with Bank Stamp)
Attorney as per Power of Attorney No.....	
Dated.....	

3.12 Annexure 11 - Bank Guarantee Format for Performance Guarantee

(To be stamped in accordance with Stamp Act)

The non-judicial stamp paper should be in the name of issuing Bank

Ref..... Bank Guarantee No.....
Date.....

To
India Post Payments Bank
Post Office
Speed Post Centre Building
Market Road
New Delhi – 110001
India

Dear Sirs,

1. In consideration of the India Post Payments Bank, a scheduled bank registered under Reserve Bank of India (hereinafter referred to as the 'Bank' or 'Purchaser' which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s..... with its Registered/Head office at
..... (hereinafter referred to as the "Contractor" or "Vendor" or "Service Provider" which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns), a Contract by issue of Letter of Intent or Purchase Order No..... dated and the same having been acknowledged by the Contractor / Vendor / Service Provider, resulting in a Contract, bearing No..... dated.....valued at.....for..... (scope of Contract) and the Contractor / Vendor / Service Provider having agreed to provide a Contract Performance Guarantee for the faithful performance of the entire Contract not exceeding Rs.
..... (in words & figures).

2. We.....(Name &
Address of Bank Branch) having its Head office at

(hereinafter referred to as the ' Issuing Bank', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the amounts due and payable under this guarantee without any demur, reservation, context, recourse or protest and/or without any reference to the Contractor merely on a demand from the Owner stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by the Owner by reason of breach by the said Contractor(s) of any of the terms or conditions contained in the said Agreement or by reason of the Contractor(s)' failure to perform the

said Agreement. Any such demand made on the Issuing Bank shall be conclusive and binding not withstanding any difference between the Owner and the Contractor / Vendor / Service Provider or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. We agree that the guarantee herein contained shall be irrevocable and shall continue to be enforceable till the Owner discharges this guarantee.

3. The Bank / Purchaser shall have the fullest liberty without affecting in any way the liability of the Bank / Purchaser under this guarantee, from time to time to extent the time for performance of the Contract by the Contractor. The Bank / Purchaser shall have the fullest liberty, without affecting this guarantee, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Bank / Purchaser and the Contractor or any other course or remedy or security available to the Bank / Purchaser. The Issuing Bank shall not be released of its obligations under these presents by any exercise by the Bank / Purchaser of its liberty with reference to the matters aforesaid or any of them or by reason of any other act of omission or commission on the part of the Bank / Purchaser or any other indulgences shown by the Owner or by any other matter or thing whatsoever which under law would, but for this provision have the effect of relieving the Issuing Bank.
4. The Issuing Bank also agrees that the Bank / Purchaser at its option shall be entitled to enforce this Guarantee against the Issuing Bank as a principal debtor, in the first instance without proceeding against the Contractor / Vendor / Service Provider and notwithstanding any security or other guarantee the Bank / Purchaser may have in relation to the Contractor's liabilities.
5. This guarantee will not be discharged due to the change in the constitution of the Bank or the Contractor(s)/Service Provider(s).
6. Notwithstanding anything contained hereinabove:
 - (1) Our liability under this guarantee is limited to Rs. (in words & figures).
 - (2) This Bank Guarantee will be valid upto; and
 - (3) We are liable to pay the guarantee amount or any part thereof under this Bank Guarantee only upon service of a written claim or demand by you on or before

In witness whereof the Issuing Bank, through its authorised officer, has set its hand and stamp on this.....day of.....20.....at.....

WITNESS

..... (Signature) (Name) Address)	 (Signature) (Name) (Official (Designation with Bank Stamp)
--	---

3.13 Annexure 12 - Certificate of Local Content

(Format to be submitted by the bidder)

(Certificate from the statutory auditor or cost auditor of the company (in case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content, on their letter head with Registration Number with seal)

To,
The MD & CEO,
India Post Payments Bank
, 2nd Floor, Speed Post Centre Building,
Bhai Veer Singh Marg, Gole Market, New Delhi – 110 001.

Reference: BID DOCUMENT No: <<GEM/2023/B/XXXX> > Dated <DD/MM/YYYY>

Subject: Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

Dear Sir,

This is to certify that the proposed <name of the product/service/works> is having the local content of _____% as defined in the above-mentioned RFP. The place of value addition is _____ location.

This certificate is submitted in reference to the Public Procurement (Preference to Make in India), Order 2017 including revision thereto.

Signature and Stamp of Statutory Auditor / Cost Auditor/Cost Accountant

Name and Designation:

Registration Number:

Seal:

UDIN Number:

Date:

Counter-signed: Bidder / OEM

(Stamp and Signature of Authorized Person)

Name & Designation

Name of company

Date

Place

3.14 Annexure 13 - Integrity Pact

(To be submitted by all bidders on normal paper and to be executed on stamp paper by successful bidder)

India Post Payments Bank Limited (CIN U74999DL2016GOI304561), having its Registered Office at Post Office, Speed Post Centre Building, Market Road, New Delhi – 110001, (hereinafter referred to as the "Principal", "IPPB" or "Buyer", as the case may be, which expression shall unless repugnant to the context thereof, include its successors, assigns) hereinafter referred to as **"The Principal,"** and _____ hereinafter referred to as **"The Bidder/ Contractor/Service Provider"**

The Principal intends to award contract/s for _____, under laid down organisational procedures, The Principal values full compliance with all relevant laws of the land, rules, regulations, economical use of resources, and fairness / transparency in its relations with its Bidder(s) and / or Contractor(s).

To achieve these goals, the Principal shall appoint Independent External Monitors (IEMs) who shall monitor the tender process and the execution of the contract for compliance with the abovementioned principles.

Section 1 – Commitments of the Principal

1) The Principal commits itself to take all measures necessary to prevent corruption and to observe the following principles: -

- a. No employee of the Principal, personally or through family members, shall in connection with the tender for, or the execution of a contract, demand, take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.
- b. The Principal shall treat all Bidder(s) with equity and reason during the tender process. The Principal shall, in particular, before and during the tender process, provide to all Bidder(s) the same information and shall not provide to any Bidder(s) confidential / additional information through which the Bidder(s) could obtain an advantage in the tender process or the contract execution.
- c. The Principal shall exclude from the process all known persons having conflict of interest.

2) If the Principal obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act, or if there be a substantive suspicion in this regard, the Principal shall inform the Chief Vigilance Officer and in addition shall initiate disciplinary proceedings.

Section 2 – Commitments of the Bidder(s)/ Contractor(s)

1) The Bidder(s)/ Contractor(s) commits themselves to take all measures necessary to prevent corruption. The Bidder(s)/ Contractor(s) commits themselves to observe the following principles during participation in the tender process and the contract execution.

a. The Bidder(s)/ Contractor(s) shall not, directly or through any other person or firm, offer, promise, or give to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which they are not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or the execution of the contract.

b. The Bidder(s)/ Contractor(s) shall not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal, in violation of the Competition Act, 2002 (as amended from time to time). This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelisation in the tender process.

c. The Bidder(s)/ Contractor(s) shall not commit any offence under the relevant IPC/PC Act; further, the Bidder(s)/ Contractor(s) shall not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the Principal as part of the business

relationship, regarding plans, technical proposals, and business details, including information contained or transmitted electronically.

d. The Bidder(s)/Contractor(s) of foreign origin shall disclose the name and address of the Agents/representatives in India, if any. Similarly, the Bidder(s)/Contractor(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details, as mentioned in the "Guidelines on Indian Agents of Foreign Suppliers," shall be disclosed by the Bidder(s)/Contractor(s). Further, as mentioned in the Guidelines, all the payments made to the Indian agent/representative must be in Indian Rupees only.

e. The Bidder(s)/ Contractor(s) shall, when presenting their bid, disclose any and all payments made, is committed to, or intends to make to agents, brokers, or any other intermediaries in connection with the award of the contract.

f. Bidder(s) /Contractor(s) who have signed the Integrity Pact shall not approach the Courts while representing the matter to IEMs and shall wait for their decision.

2) The Bidder(s)/ Contractor(s) shall not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from the tender process and exclusion from future contracts

If the Bidder(s)/Contractor(s), before award or during execution, has committed a transgression through a violation of Section 2, above or in any other form such as to put their reliability or credibility in question, the Principal is entitled to disqualify the Bidder(s)/Contractor(s) from the tender process or take action as per laid down procedure to debar the Bidder(s)/Contractor(s) from participating in the future procurement processes of the Government of India.

Section 4 – Compensation for Damages

1) If the Principal has disqualified the Bidder(s) from the tender process before the award according to Section 3, the Principal is entitled to demand and recover the damages equivalent to Earnest Money Deposit/ Bid Security.

2) If the Principal has terminated the contract according to Section 3, or if the Principal is entitled to terminate the contract according to Section 3, the Principal shall be entitled to demand and recover from the Contractor liquidated damages of the Contract value or the amount equivalent to Performance Bank Guarantee.

Section 5 – Previous transgression

1) The Bidder declares that no previous transgressions occurred in the last three years with any other Company in any country conforming to the anti-corruption approach or with any Public Sector Enterprise in India that could justify his exclusion from the tender process.

2) If the Bidder makes an incorrect statement on this subject, the Principal shall act like para of Section 4 above.

Section 6 – Equal treatment of all Bidders / Contractors / Subcontractors

In the case of Sub-contracting, the Principal Contractor shall take responsibility for adopting the Integrity Pact by the Sub-contractor.

a. The Principal shall enter into agreements with identical conditions as this one with all Bidders and Contractors.

b. The Principal shall disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section 7 – Criminal charges against violating Bidder(s) / Contractor(s) / Subcontractor(s)

If the Principal obtains knowledge of the conduct of a Bidder, Contractor, or Subcontractor, or of an employee or a representative or an allied firm of a Bidder, Contractor or Subcontractor which constitutes corruption, or if the Principal has substantive suspicion in this regard, the Principal shall inform the same to the Chief Vigilance Officer.

Section 8 – Independent External Monitor

- 1) The following panel has been appointed as Independent External Monitor (hereinafter referred to as Monitor) by IPPB with approval of Central Vigilance Commission for overseeing and implementation of this Pact in IPPB.

S. No.	IEM	Email ID
1	Smt Rashmi Goel, IRAS(Retd.)	rashmijaingoel1@gmail.com
2	Shri Muthiah Selvaraj	selvarajmdl@gmail.com

- 2) The task of the Monitor is to review, independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.
- 3) The Monitor is not subject to instructions by the parties' representatives and performs their functions neutrally and independently. The Monitor would have access to all Contract documents whenever required. It shall be obligatory for them to treat the information and documents of the Bidders/Contractors as confidential. They report to the Management of the Principal.
- 4) The Bidder(s)/Contractor(s) accepts that the Monitor has the right to access without restriction, all Project documentation of the Principal, including that provided by the Contractor. Upon their request and demonstration of a valid interest, the Contractor shall also grant the Monitor unrestricted and unconditional access to their project documentation. The same applies to Subcontractors.
- 5) The Monitor is under contractual obligation to treat the information and documents of the Bidder(s)/Contractor(s)/ Sub-contractor(s) with confidentiality. The Monitor has also signed declarations on 'Non-Disclosure of Confidential Information' and 'Absence of Conflict of Interest.' In case of any conflict of interest arising later, the IEM shall inform the Management of the Principal and recuse themselves from that case.
- 6) The Principal shall provide the Monitor with sufficient information about all meetings among the parties related to the Project, provided such meetings could impact the contractual relations between the Principal and the Contractor. The parties offer the Monitor the option to participate in such meetings.
- 7) As soon as the Monitor notices, or believes to notice, a violation of this agreement, they shall inform the Management of the Principal and request the Management to discontinue or take corrective action or other relevant action. The Monitor can, in this regard, submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action, or tolerate action.
- 8) The Monitor shall submit a written report to the Management of the Principal, within 8 to 10 weeks from the date of reference or intimation to him by the Principal and, should the occasion arise, submit proposals for correcting problematic situations.
- 9) If the Monitor has reported to the Management of the Principal a substantiated suspicion of an offence under the relevant IPC/ PC Act, and the Management of the Principal has not, within the reasonable time, taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.
- 10) The word '**Monitor**' would include both singular and plural.

Section 9 – Pact Duration

This Pact begins when both parties have legally signed it. It expires for the Contractor, 12 months after the last payment under the contract, and for all other Bidders, 6 months after the contract has been awarded. Any violation of the same would entail disqualifying the bidders and exclusion from future business dealings.

If any claim is made / lodged during this time, the same shall be binding and continue to be valid despite the lapse of this Pact as specified above, unless it is discharged / determined by the Management of the Principal.

Section 10 – Other provisions

- 1) This agreement is subject to Indian Law. The place of performance and jurisdiction is the place from where the Tender/ Contract is issued.
- 2) Changes, supplements, and termination notices must be submitted in writing. Side agreements have not been made.
- 3) If the Contractor is a partnership or a consortium, this agreement must be signed by all partners or consortium members.
- 4) Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties shall strive to come to an agreement according to their original intentions.
- 5) Issues like Warranty / Guarantee, etc., shall be outside the purview of IEMs.
- 6) In the event of any contradiction between the Integrity Pact and its Annex, the Clause in the Integrity Pact shall prevail.

Place ----- Date -----

Witness 1: _____ Witness 1: _____

(Name & Address (Name & Address

For and on behalf of Principal

For and on behalf of Bidder/Contractor

INDIA POST PAYMENTS BANK,
2nd floor, Speed Post Centre,
Bhai Veer Singh Marg, Market Road
New Delhi- 110001

M/s Bidder/Contractor Name,

WITNESSES:

1.
(Signature, name and address)

2.
(Signature, name and address)

WITNESSES:

1.
(Signature, name and address)

2.
(Signature, name and address)

Place: Date:

3.15 Annexure 14 - Non-Disclosure Agreement

THIS AGREEMENT is made on this the <***> day of <***> 20--- at <***>, New Delhi.

BETWEEN

India Post Payments Bank Limited a public limited company wholly owned by the Government of India and set up under the Companies Act, 2013, and the Payment Banking Regulation Act, 1949 as a Payments Bank under the Department of Posts and in line with relevant guidelines of the Reserve Bank of India, having its Registered & at 2nd Floor, Speed Post Centre Building, Bhai Veer Singh Marg, Market Road, New Delhi – 110001 (hereinafter referred to as the "Payment Bank" or "Bank", which expression shall unless repugnant to the context thereof, include its successors, assigns) party of the First part ;

AND

<***>, a incorporated under the, having its registered office at <***> (hereinafter referred to as the ".....", as the case may be (which expression shall, unless the context otherwise requires, include its permitted successors and assigns), party of the other part.

Each of the parties mentioned above are collectively referred to as the 'Parties' and individually as a 'Party'.

WHEREAS:

- A. the is a providing
.....to the Payment Bank.
- B. The Confidential Information shall at all times belong to the Party providing ("Provider" or "Discloser" or " Disclosing Party") such information and shall be provided to the recipient Party ("Recipient" or "Receiving Party") for the specific purposes of achieving the objects of the Service Agreement.
- C. The Parties are executing these presents to set out their understanding with regard to the manner of dealing with the Confidential Information (as defined below).

NOW THEREFORE, in consideration of the mutual covenants, promises, assurances, representations and provisions set forth herein, the Parties hereto agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1. Definitions

- a) "Agreement" means this non-disclosure agreement, as amended from time to time, and includes all recitals, schedules, annexures or exhibits annexed hereto.
- b) "Agreed Purpose" mean the specific purpose for which the Provider has provided the Confidential Information to the Recipient;
- c) "Confidential Information" shall mean and includes, without limitation, any and all information, data, knowledge, and know-how, whether pertaining to commercial, technical, scientific, operational, administrative, financial, marketing or business affairs, or intellectual property, or otherwise (in whatever form and however communicated) relating, directly or indirectly, to the Provider, which the Provider or its employees, directors, officers, agents, consultants etc., would have disclosed or delivered prior to the date of this Agreement, or is disclosed or delivered after the date of this

Agreement, to the Recipient or to any third party on the request of the Recipient, in writing, electronically, verbally, or through visual means, either with the disclaimer of confidentiality or not, or which the Recipient (or such third party) learns, obtains or derives, orally, through observation or through analysis, interpretations, compilations, studies, or evaluations of such information, data, knowledge, or know-how; for clarity, the information, data, knowledge, and know-how includes, without limitation, those in the nature of, or pertaining to, business plans, marketing and financial plans, strategy, projections, policy details, client details, various products, details regarding pricing, technical know-how etc. in respect of such products, and also the documents, registers, books, photographs, notes, renderings, journals, notebooks, computer programs, computer readable video, audio or sound files, and samples relating thereto;;

- d) "Parties" means the Payment Bank and for the purposes of this Agreement and "Party" shall be interpreted accordingly;

1.2. Interpretation

In this Agreement, unless otherwise specified:

- (i) references to Clauses, Sub-Clauses, Paragraphs and Schedules are to clauses, sub-clauses, paragraphs of and schedules to this Agreement;
- (ii) use of any gender includes the other genders;
- (iii) references to a 'company' shall be construed so as to include any company, corporation or other body corporate, wherever and however incorporated or established;
- (iv) references to a 'person' shall be construed so as to include any individual, firm, company, government, state or agency of a state, local or municipal authority or government body or any joint venture, association or partnership (whether or not having separate legal personality);
- (v) a reference to any statute or statutory provision shall be construed as a reference to the same as it may have been, or may from time to time be, amended, modified or re-enacted;
- (vi) any reference to a 'day' (including within the phrase 'business day') shall mean a period of 24 hours running from midnight to midnight;
- (vii) references to a 'business day' shall be construed as a reference to a day (other than 2nd and 4th Saturday, Sunday and other gazetted holidays) on which the Payment Bank is generally open for business;
- (viii) references to times are to Indian standard time;
- (ix) a reference to any other document referred to in this Agreement is a reference to that other document as amended, varied, novated or supplemented at any time; and
- (x) all headings and titles are inserted for convenience only. They are to be ignored in the interpretation of this Agreement.

2. TERM

This Agreement will remain in effect for 8 years from the date of execution of this Agreement or 5 years from the date of the last disclosure of Confidential Information, whichever is later ("Term"), at which time it will terminate, unless extended by the provider of information in writing.

3. TERMINATION

The parties to this agreement may terminate this agreement by providing prior notice of thirty (30) days in writing, without giving any reasons for the same. However, the confidentiality obligations of both the parties shall survive a term of 5 years from the date of termination or expiry of this Agreement

4. USE OF THE CONFIDENTIAL INFORMATION; NON-DISCLOSURE

The Recipient hereby agrees that it shall use the Confidential Information only for the Agreed Purpose. Further, the Recipient shall not, except with the prior written consent of the Provider or in accordance with this Agreement disclose, transfer, or use, to its financial or monetary advantage, any such Confidential Information. The obligation of the Recipient contained in this Clause shall not be limited in point in time save and except at such time as the exclusions contained hereof become applicable in respect thereof as per Clause 2 hereof. Also, the Recipient and its Representatives will not disclose to any person the fact that the Confidential Information has been made available to it or its Representatives or that Confidential Information has been provided by Provider to the Recipient and/or its representatives.

5. OBLIGATIONS OF THE RECEIVING PARTY

The Receiving Party shall:

- (a) use the Confidential Information only for the Agreed Purpose and shall hold the Confidential Information in confidence using the same degree of care as it normally exercises to protect its own proprietary information, taking into account the nature of the Confidential Information, and
- (b) grant access to Confidential Information only to its employees on a "need to know basis" and restrict such access as and when not necessary to carry out the Agreed Purpose.
- (c) cause its employees to comply with the provisions of this Agreement;
- (d) reproduce Confidential Information only to the extent essential to fulfilling the Agreed Purpose, and
- (e) prevent disclosure of Confidential Information to third parties;
- (f) disclose the Confidential Information to its consultants/contractors on a need to know basis; provided that by doing so, the Recipient agrees to bind such consultants/ contractors to terms at least as restrictive as those stated herein. The Recipient upon making a disclosure under this Clause shall:
 - (i) advise the consultants/contractors of the confidentiality obligations imposed on them by this Clause.
 - (ii) upon the Provider's request, the Recipient shall either return to the Provider all Confidential Information or shall certify to the Provider that all media containing Confidential Information have been destroyed.
 - (iii) not to remove any Confidential Information from the premises of the Provider without prior written approval of the Provider.
 - (iv) exercise extreme care in protecting the confidentiality of any Confidential Information which is removed, only with the Provider's prior written approval, from the Provider's premises. Each Party agrees to comply with any and all terms and conditions the Provider may impose upon any such approved removal, such as conditions that the removed Confidential Information and all copies must be returned by a certain date, and that no copies are to be made off of the premises.
 - (v) Upon the Provider's request, the Recipient shall promptly return to the Provider all tangible items containing or consisting of the Provider's Confidential Information all copies thereof.

The recipient of information agrees that the provider of information shall have the right to obtain an immediate injunction enjoining any breach of this Agreement, as well as the right to pursue any and all other rights and remedies available at law or in equity for such a breach.

6. EXCEPTIONS TO CONFIDENTIAL INFORMATION

The foregoing restrictions on each party's use or disclosure of Confidential Information shall not apply to the Confidential Information that the Recipient can demonstrate that such Confidential Information:

- (a) was independently developed by the Recipient; or
- (b) has become generally available to the public without breach of confidentiality obligations of the Recipient; or

- (c) was in the Recipient's possession without restriction or was known by the Recipient without restriction at the time of disclosure; or
- (d) is the subject of a subpoena or other legal or administrative demand for disclosure; provided, however, that the Recipient has given the Provider prompt notice of such demand for disclosure and the Recipient reasonably cooperates with the Provider's efforts to secure an appropriate protective order; or
- (e) is disclosed with the prior consent of the Provider; or
- (f) was in its possession or known to it by being in its use or being recorded in its files or computers or other recording media prior to receipt from the Provider and was not previously acquired by the Recipient from the Provider under an obligation of confidence; or
- (g) the Recipient obtains or has received such information from a source other than the Provider without breach by the Recipient or such source of any obligation of confidentiality or non-use towards the Provider.

7. OWNERSHIP OF THE CONFIDENTIAL INFORMATION

- (a) Each Party recognizes and agrees that all of the Provider's Confidential Information is owned solely by the Provider (or its licensors) and that the unauthorized disclosure or use of such Confidential Information would cause irreparable harm and significant injury, the degree of which may be difficult to ascertain.
- (b) By disclosing the Confidential Information or executing this Agreement, the Provider does not grant any license, explicitly or implicitly, under any trademark, patent, copyright, mask work protection right, trade secret or any other intellectual property right. The Provider disclaims all warranties regarding the information, including all warranties with respect to infringement of intellectual property rights and all warranties as to the accuracy or utility of such information.
- (c) Access to Confidential Information hereunder shall not preclude an individual who has seen such Confidential Information for the purposes of this Agreement from working on future projects for the Provider which relate to similar subject matters, provided that such individual does not make reference to the Confidential Information and does not copy the substance of the Confidential Information during the Term. Furthermore, nothing contained herein shall be construed as imposing any restriction on the Recipient's disclosure or use of any general learning, skills or know-how developed by the Recipient's personnel under the Service Agreement.
- (d) Execution of this Agreement and the disclosure of Confidential Information pursuant to this Agreement do not constitute or imply any commitment, promise, or inducement by either Party to make any purchase or sale, or to enter into any additional agreement of any kind.

8. Governing Law & Jurisdiction

This Agreement, the relationship between the Parties and all rights and obligations arising from any act done or required to be done under this Agreement and the terms herein shall be governed by and construed in accordance with the laws of India. The courts at New Delhi, India shall have exclusive jurisdiction over the subject matter.

9. MODIFICATION / AMENDMENT

No modification, amendment, or other change in this Agreement will be binding on any Party unless consented to in writing to by both Parties.

10. WAIVER

Waiver including partial or conditional waiver, by either Party of any default by the other Party in the observance and performance of any provision of or obligations under this Agreement:-

- (a) shall be in writing

- (b) shall not operate or be construed as a waiver of any other or subsequent default hereof or of other provisions of or obligations under this Agreement;
- (c) shall be executed by a duly authorized representative of the Party; and
- (d) shall not affect the validity or enforceability of this Agreement in any manner.

11. EXCLUSION OF IMPLIED WARRANTIES

This Agreement expressly excludes any warranty, condition or other undertaking implied at law or by custom or otherwise arising out of any other agreement, except the service agreement, if any, executed between the Parties or any representation by either Party not contained in a binding legal agreement executed by both Parties.

12. ENTIRE AGREEMENT

This Agreement constitute a complete and exclusive statement of the terms of the agreement between the Parties on the subject hereof, and no amendment or modification hereto shall be valid and effective unless such modification or amendment is agreed to in writing by the Parties and duly executed by persons especially empowered in this behalf by the respective Parties. All prior written or oral understandings, offers or other communications of every kind pertaining to this Agreement are abrogated and withdrawn.

13. SEVERABILITY

If for any reason whatever, any provision of this Agreement is or becomes invalid, illegal or unenforceable or is declared by any court of competent jurisdiction or any other instrumentality to be invalid, illegal or unenforceable, the validity, legality or enforceability of the remaining provisions shall not be affected in any manner, and the Parties shall negotiate in good faith with a view to agreeing to one or more provisions which may be substituted for such invalid, unenforceable or illegal provisions, as nearly as is practicable to such invalid, illegal or unenforceable provision. Failure to agree upon any such provisions shall not be subject to the dispute resolution procedure set forth under this Agreement or otherwise.

14. NO PARTNERSHIP

This Agreement shall not be interpreted or construed to create an association, joint venture or partnership between the Parties, or to impose any partnership obligation or liability upon either Party, and neither Party shall have any right, power or authority to enter into any agreement or undertaking for, or act on behalf of, or to act as or be an agent or representative of, or to otherwise bind, the other Party except as expressly provided under the terms of this Agreement.

15. THIRD PARTIES

This Agreement is intended solely for the benefit of the Parties and their respective successors and permitted assigns, and nothing in this Agreement shall be construed to create any duty to, standard of care with reference to, or any liability to, any person not a Party to this Agreement.

16. SUCCESSORS AND ASSIGNS

The Agreement shall be binding on and shall inure to the benefit of the Parties and their respective successors and permitted assigns.

17. NOTICES

Any notice or other communication to be given by any Party to the other Party under or in connection with the matters contemplated by this Agreement shall be in writing and shall be given by hand delivery, recognized courier, registered post, email or facsimile transmission and delivered or transmitted to the Parties at their respective addresses set forth below:

If to the Payment Bank:
India Post Payments Bank Ltd.,

, 2nd Floor,
Speed Post Centre, Bhaai Veer Singh Marg,
Market Road, New Delhi-110001

If to the

Attn. <***>

Phone: <***>

Fax No. <***>

18. LANGUAGE

All notices required to be given by one Party to the other Party and all other communications, documentation and proceedings which are in any way relevant to this Agreement shall be in writing and in the English language.

19. COUNTERPARTS

This Agreement may be executed in counterparts, each of which, when executed and delivered, shall constitute an original of this Agreement.

20. DAMAGES:

- a) Both parties acknowledge that the Confidential Information coming to the knowledge of the other may relate to and/or have implications regarding the business activities, methods, processes and or information of the parties, which afford them certain competitive and strategic advantage of the Disclosing Party.
- b) The provisions of this Agreement are necessary for the protection of the business goodwill of the parties and are considered by the parties to be reasonable for such purposes. Both the parties agree that any breach of this Agreement will cause substantial and irreparable damages to the other party and, therefore, in the event of such breach, in addition to other remedies, which may be available, the party violating the terms of Agreement shall be liable for the entire loss and damages on account of such disclosure.
- c) Each party agrees to indemnify the other against loss suffered due to breach of contract and undertakes to make good the financial loss caused directly or indirectly by claims brought about by its customers or by third parties.
- d) The parties hereto acknowledge and agree that in the event of a breach or threatened breach by the other of the provisions of this Agreement, the party not in breach may have no adequate remedy in money or damages and accordingly the party not in breach shall be entitled to injunctive relief against such breach or threatened breach by the party in breach.

21. MITIGATION

Without prejudice to any express provisions of this Agreement on any mitigation obligations of the Parties, each of the parties to this agreement i.e Payment Bank and the shall at all times take all reasonable steps to minimize and mitigate any loss for which the relevant Party is entitled to bring a claim against the other Party pursuant to this Agreement.

22. REMOVAL OF DIFFICULTIES

The Parties acknowledge that it is conceivable that the Parties may encounter difficulties or problems in the course of implementation of the Project and the transactions envisaged under this Agreement. The Parties agree and covenant that they shall mutually discuss such difficulties and problems in good faith and take all reasonable steps necessary for removal or resolution of such difficulties or problems.

IN WITNESS WHEREOF THE PARTIES HAVE EXECUTED AND DELIVERED THIS AGREEMENT AS OF THE DATE FIRST ABOVE WRITTEN.

WITNESSES:

1. (Name, Designation, Organisation, and Signature)
2. (Name, Designation, Organisation, and Signature)

Payment Bank

[.....]

Signed

Signed

For and on behalf of the

For and on behalf of the

India Post Payments Bank Limited

(Company name)

By: _(signature)_

By: _(signature)_

(Name and designation)_

(Name and designation)_

An authorised signatory duly nominated
pursuant to Board Resolution No. dated of
the

3.16 Annexure 15 - Master Service Agreement

This Agreement is made by and between

INDIA POST PAYMENTS BANK LIMITED, a public limited company wholly owned by the Government of India through Department of Post under Ministry of Communication and set up under the Companies Act, 2013, and the Banking Regulation Act, 1949 as a Payments Bank under the Department of Posts and in line with relevant guidelines of the Reserve Bank of India, having its Registered & at Post Office, Speed Post Centre Building, Market Road, New Delhi – 110001 (hereinafter referred to as the **"Payments Bank", or "Bank" or "IPPB"** which expression shall unless repugnant to the context thereof, include its successors, assigns) and acting through(name) its(designation), of the FIRST PART;

AND

..... having its registered address at,

..... ,

....., (hereinafter referred to as the **"Service Provider" and/or "Vendor"**, which expression unless repugnant to the context herein shall mean and include its successors in business and permitted assigns) party of the **OTHER PART**.

(The IPPB and Service Provider shall hereinafter be individually referred to as a **"Party"** and collectively as the **"Parties"**.)

WHEREAS:

- I. India Post Payments Bank Limited (IPPB) is a company incorporated and registered under Companies Act, 2013, and issued a Request for Proposal No.dated (hereinafter referred to as **"RFP"**) for selection of a Service Provider for the Project.
- I. The Service Provider had submitted the Proposal in response to the RFP and with the intention of performing its obligation for..... **"the Project"** as per the scope of work detailed in the RFP and this Agreement collectively.
- II. The Service Provider shall do all such acts, as mentioned in this agreement and as per the requirement and upto the satisfaction of the IPPB.

NOW THEREFORE, in consideration of the mutual promises and covenants and conditions herein contained and other good and valuable consideration (the receipt and adequacy of which are hereby mutually acknowledged), the Parties with the intent to be legally bound hereby agree and confirm as u n d e r :

4. This Agreement establishes the contractual framework for providing the services forand/or such other services as agreed between the Service Provider and the IPPB from time to time in terms of this Agreement executed between the Service Provider and the IPPB in accordance with the procedures set out in this Agreement and the RFP.
5. This Agreement shall operate as a legally binding Contract for service, specifying the terms which apply to the Parties under this Agreement and to the provision of the Services t o b e r e n d e r e d by the Service Provider to the IPPB.
6. The purpose of this Agreement is to set out as follows:
 - a) Rights and obligations of the IPPB and the Service Provider in relation to services for or such other services as agreed between the Service Provider and the IPPB.

- b) The manner in which the Services are to be provided by the Service Provider, which shall strictly be in accordance to this agreement.

7. In terms of this Agreement, the Service Provider shall, within the timelines provided in the RFP and under this Agreement:

- a) Has provided /has to provide an unconditional and irrevocable Performance Security/ Performance Bank Guarantee in the form of Insurance Surety Bonds, AC Payee Demand Draft, Fixed Deposit Receipt from a commercial Bank, Bank Guarantee from a commercial bank or online payment in the account of IPPB, of 5 (Five) % of the contract value and valid for a period of 60 days beyond the date of completion of all contractual obligations of the Service Provider to Perform its obligations.
- b) Fulfil all other obligations of the Service Provider as specified under the RFP and this Agreement.
- c) Undertake any/all repair, replacement, up-gradation and procurement of equipment necessary for providing the services, at its own cost.
- d) Provide such suitably qualified, experienced and competent personnel as may reasonably be required for the performance of the Services towards the execution of Project. If so requested by the IPPB, the Service Provider shall provide evidence of previous experience, qualifications and competence of the personnel engaged in the performance of such services.
- e) Withdraw and/or bar its employee/s or agent/s from extending such Services, if, in the sole opinion of the IPPB:
 - 1) The quality of Service rendered by the said employee/agent of the Service Provider is not in accordance with the quality or the Scope of Work as per clause 9 of this agreement or upto the satisfaction of the IPPB.
 - 2) It is not in the interest of the IPPB that such employee/agent of the Service Provider continues to be involved in the provision of the Service in relation to the Project.
- f) Subject to the terms of this Agreement, the Service Provider shall ensure deployment of sufficient number of personnel to provide the required level of services, in a prompt and efficient manner.
- g) The Service Provider shall not knowingly engage or continue the engagement of any person with a criminal record/ conviction and shall bar any such person from participating directly or indirectly in the provision of Services under this Agreement.
- h) The Service Provider shall not exercise any lien on any of the assets, properties, documents, instruments, or material belongings to the IPPB and in the custody of the Service Provider for any amount due or claimed to be due by the Service Provider from the IPPB.
- i) The Service Provider shall regularly provide updates to the IPPB with respect to the Services provided, and shall meet the designated personnel of the IPPB to discuss and review its performance at such intervals as may be agreed upon between the parties, or whenever called upon by the IPPB to do so.
- j) The Service Provider shall be responsible for compliance of all laws, rules, regulations and ordinances, applicable with respect to its employees, subcontractors and agents (including all labour laws but not limited to the Minimum wages Act, Provident Fund laws, Workmen's Compensation Act etc.) and shall establish and maintain all proper records as statutorily required as per the law of the land or by code/practice, including but not limited to accounting records, labour and payment records, corporate policy etc., as applicable from time to time, including records and returns etc. which are required to be filed by the Service Provider with the statutory authorities from time to time as per applicable laws.
- k) The Service Provider shall provide, access to its premises and records, being maintained in relation to the Project and with regard to the job being performed thereto as per this Agreement

with the IPPB, to the authorized personnel of the IPPB / its auditors (internal and external)/ any statutory / regulatory authority / authorized personnel to carry out any kind of process of audit including that of its operations and records related to the IPPB's Management Services, as per the satisfaction of the aforesaid personnel/authority/Service Provider. In addition, the IPPB shall not disturb or prevent Service Provider's performance of activity.

- l) The Service Provider shall ensure that:
 - i) The Service Provider must ensure and confirm due diligence/KYC/verification of its own employees as well as the employees of its sub-contractors/agent(if any) and must be able to provide documentary evidence for the same if required.
 - ii) The Service Provider must build adequate safeguards to ensure that the information / documents / records / assets of the IPPB are maintained in a way that the same are safe and there is no sharing/co-mingling of similar data/ information, in any manner, with other organizations to which it may be providing services.
- m) The Service Provider shall ensure preservation of all documents / data in accordance with all legal / regulatory obligations.
- n) The Service Provider shall put in place a Business Continuity Plan (BCP) and share the same with the IPPB.

8. CONDITIONS PRECEDENT:

This Agreement is conditional upon the Service Provider having fulfilled all of the Conditions Precedent, which are as follows:

- a. The Service Provider has provided /has to provide an unconditional and irrevocable Performance Security/ Performance Bank Guarantee in the form of Insurance Surety Bonds, AC Payee Demand Draft, Fixed Deposit Receipt from a commercial Bank, Bank Guarantee from a commercial bank or online payment in the account of IPPB, of **5 (Five) %** of the contract value and valid for a period of 60 days beyond the date of completion of all contractual obligations of the Service Provider to Perform its obligations.
- b. The Service Provider shall provide to the IPPB, the certified true copies of its constitutional documents and Board resolutions or equivalent document authorizing the execution, delivery and performance of this Agreement.

9. NON-FULFILMENT OF ANY CONDITIONS PRECEDENT:

- a. In the event that any of the Conditions Precedent relating to the Service Provider has not been fulfilled, this Agreement shall cease to have any effect as of that date and this Agreement can be terminated at the option of IPPB.
- b. In the event that the Agreement fails to come into effect on account of non-fulfilment of any of the Conditions Precedent, the IPPB shall not be liable in any manner whatsoever to the Service Provider and the IPPB shall notify the Service Provider in writing of such failure and may forfeit the Performance Security/ Performance Bank Guarantee.
- c. In the event that possession of any facilities and/or data has been delivered to the Service Provider by or through the IPPB prior to the fulfilment in full of the Conditions Precedent, upon the termination of this Agreement, such facilities and data shall immediately revert to the IPPB, free and clear from any Encumbrances or claims.

10. PERFORMANCE BANK GUARANTEE/PERFORMANCE SECURITY:

The Service Provider shall at its own expense has provided/has to provide an unconditional and irrevocable Performance Security/ Performance Bank Guarantee in the form of Insurance Surety Bonds, AC Payee Demand Draft, Fixed Deposit Receipt from a commercial Bank, Bank Guarantee from a commercial bank or online payment in the account of IPPB, of **5 (Five) %** of the contract value

and valid for a period of 60 days beyond the date of completion of all contractual obligations of the Service Provider to Perform its obligations.

In the event of the Service Provider being unable to fulfil its obligation under the Agreement or cause delay in providing the requisite service for whatever reason, the IPPB reserves the right to invoke and forfeit the Performance Bank Guarantee / Performance security at its sole discretion.

Notwithstanding and without prejudice to any rights whatsoever of the IPPB under this Agreement, the proceeds of the Performance Security/ Performance Bank Guarantee shall be payable to IPPB as compensation by the Service Provider for its failure to complete its obligations under this Agreement. The IPPB shall notify the Service Provider in writing of the exercise of its right to receive such compensation within 14 days, indicating the contractual obligation(s) with respect to which the Service Provider is in default.

The IPPB shall also be entitled to make recoveries from the Service Provider's bills, Performance Security/ Performance Bank Guarantee, or any other amount due to the Service Provider, the equivalent value of any payment made to the Service Provider due to inadvertence, error, collusion, misconstruction or misstatement.

In case of delay in delivery, installation attributable to Service Provider, penalty will be levied. But apart from that additional PBG for delayed period is also to be provided by Service Provider.

The Performance Security/ Performance Bank Guarantee may be discharged/returned by IPPB upon being satisfied that there has been due performance of the obligations of the Service Provider under this Agreement. However, no interest shall be payable on the Performance Security/ Performance Bank Guarantee.

11. TERM OF AGREEMENT;

The tenure of this agreement will be valid for a period of 5 years from the date of completion of successful Go-Live., Bank may further extend the contract for a period of 3 years (in three tranches, of one year each) at mutually agreed terms & conditions subject to satisfactory performance of Service Provider.

12. SCOPE OF WORK:

The Service Provider shall perform its obligations and work as per Schedule-A to this agreement.

13. ESCROW ARRANGEMENT

Service provider shall execute Escrow arrangement with the IPPB and Escrow Agent for the safe depositing of the complete source code being supplied along with customizations carried out in the software as per IPPB's requirements. Also, to maintain the currency of the version by regularly updating the same with the related upgrades/fixes/patches, a copy of the source code of the application customized for IPPB shall be kept in an Escrow account for which all expenses will be borne by Service Provider. A copy of all subsequent updates to the source code shall also be placed in the said Escrow account.

14. SLA & TIMELINES

The SLA & timelines shall be as per Schedule-A to this agreement.

15. Terms of Payment, Commercials and Service Credits and Debits

The term of payment, commercials shall be as per Schedule-B to this agreement.

Except as otherwise provided for herein or as agreed between the Parties in writing, the IPPB shall not be required to make any payments in respect of the Services other than those covered by the terms of payment as stated under Schedule-B.

16. INVOICING, SETTLEMENT AND TAXATION

The Invoicing, Settlement and Taxation shall be as per Schedule-B to this agreement.

17. REPRESENTATION AND WARRANTY

- i) The Service Provider hereby represents and warrants that:
- a) It has been duly incorporated in India and is valid as per the existing laws of India.
 - b) It has taken all required measures to authorize the execution and consummation of this Agreement and will furnish satisfactory evidence of the same upon request. An authenticated list of the officers of the Service Provider who are authorized to sign and / or execute this Agreement and / or other related documents, in writing and duly supported by Board Resolution, shall be provided to the IPPB.
 - c) The execution, delivery and performance of this Agreement by the Service Provider in accordance with its terms shall not violate or conflict with its Articles and/or memorandum of association and/or any other organizational documents.
 - d) That it shall comply with all the provisions of the Information Technology Act, 2000 and any other laws for protection of data of IPPB or any of its customers or any data provided by IPPB.
 - e) The Service Provider shall ensure that:
 - i. Nothing in this Agreement would be construed to mean the creation or imposition of any lien, charges or encumbrance upon the capital stock, properties or assets of the IPPB;
 - ii. That there are no judicial or administrative actions, proceedings or investigations pending to the best of its knowledge, which would have a material adverse effect on its capacity to perform its obligations under this Agreement or any of the other documents referred to in this Agreement to which it is a party.
 - ii) The Service Provider hereby represents and warrants to the IPPB that it shall not violate any proprietary and/ or intellectual property rights of any third party, including without limitation, confidential relationships, patents, trade secrets, copyright and/or any other proprietary rights.
 - iii) The Employees of the Service Provider shall continue to be the Employees of the Service Provider and work under its discretion and shall not claim any employment from the IPPB by the virtue of providing the services, irrespective of the location of their work.
 - iv) At no time during the term of the agreement, employees of Service Provider will be treated as employees of the IPPB. The payment of salary, benefits and all related taxes for the employees of the Service Provider will be the sole responsibility of the Service Provider.
 - v) The Service Provider agrees, represents and warrants that no officer of the IPPB, director, employee or immediate family member thereof has received or will receive anything of value of any kind from the Service Provider or its officers, directors, employees or agents in connection with this Agreement; and that none of them has a business relationship of any kind with the Service Provider, it's Personnel or any of its other officers.

The express warranties granted above are in addition to all other warranties, whether express or implied. The Service Provider warrants and represents to the IPPB in relation to this Agreement, that:

- i. It has the full legal right, capacity and authority to enter into this Agreement, to perform its obligations hereunder and this Agreement constitutes a legal, valid and binding obligation on the Service Provider. The Service Provider has the power and authority to execute and deliver the terms and provisions of this Agreement and has taken all necessary action to authorise the execution and delivery by it of this Agreement and the transactions contemplated hereby.
- ii. This Agreement is executed by a duly authorised representative of Service Provider.
- iii. The Service Provider shall discharge its obligations under this Agreement with due skill, care and diligence so as to comply with the conditions stated in this Agreement.

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- iv. The execution, delivery and performance by the Service Provider of this Agreement and the compliance by it with the terms and provisions hereof do not and will not: -
- a) Contravene any provision of any law, statute, rule or regulation or any order, writ, injunction or decree of any court, governmental instrumentality or Governmental Authority to which it is subject; or
 - b) Conflict with or be inconsistent with or result in any breach of any of the terms, covenants, conditions or provisions of, or constitute a default under, or result in the creation or imposition of (or the obligation to create or impose) any Security Interest upon any of its property or assets pursuant to the terms of any indenture, mortgage, deed of trust, credit agreement, loan agreement or any other agreement, contract or instrument to which it is a party or by which it or any of its property or assets is bound or to which it may be subject; or
 - c) Violate any provision of its memorandum and articles of association or any other similar constitutional documents.
- v. There are no claims, investigations or proceedings before any court, tribunal, governmental body or Governmental Authority in progress or pending against or relating to the Service Provider, which could reasonably be expected to:
- a) Enjoin, restrict or prohibit the transactions as contemplated by this Agreement; or
 - b) Prevent the Service Provider from fulfilling its obligations set out in this Agreement or arising from this Agreement or adversely affecting the validity or enforceability of this Agreement.
- vi. There is no existing ground on which any such claim, investigation or proceeding might be commenced with any reasonable likelihood of success.
- vii. The service provider undertakes to comply with all regulations/guidelines/directions issued by IPPB or the Reserve Bank of India (RBI), issued from time to time, in relation to the services performed under this agreement.
- viii. The service provider undertakes to co-operate with the relevant authorities in case of insolvency/ resolution of IPPB.
- ix. The Service Provider undertakes to provide details of data (related to IPPB and its customers) captured, processed and stored, under this agreement.
- x. The Service Provider understands that resources of service provider who provide core services are considered as "essential personnel" and the Service Provider undertakes to provide staff necessary to operate critical functions can work on-site during exigencies (including pandemic situations) as desired by IPPB;
- xi. The Service Provider shall not do or omit to do or cause or allow to be done or omitted to be done any act or thing which would result (or be likely to result) in a breach of this Agreement.
- xii. This Agreement constitutes a valid and binding obligation of Service Provider enforceable against it in accordance with its terms.
- xiii. No sums, in cash or kind, have been paid or shall be paid, by it or on its behalf, to any person by way of fees, commission or otherwise for entering into this Agreement or for influencing or attempting to influence any officer or employee of the IPPB in connection therewith.
- xiv. The Service Provider undertakes to store all data pertaining to IPPB, within the territory of India as per regulatory requirement.
- b. The Service Provider warrants and represents to the IPPB, that:**
- i) The Service Provider is experienced in managing and providing works similar to the Services and that it shall perform the Services with all due skill, care and diligence so as to comply with the conditions as stated in this Agreement.
 - ii) The Services shall be provided and rendered by appropriately qualified, trained and experienced personnel.

- iii) The Service Provider has and will have all necessary licenses, approvals, consents of third parties and all necessary technology, hardware and software to enable it to provide the Services.
- iv) The Services will be supplied in conformance with all applicable laws, enactments, orders and regulations.
- v) In the event that such warranties cannot be enforced by the IPPB, the Service Provider will enforce such warranties on behalf of the IPPB and pass on to the IPPB, the benefit of the same and any other remedy received in relation to such warranties.
- vi) IPPB shall have the right to seek information from the service provider about the third parties engaged by the Service Provider to provide services under this agreement.
- vii) IPPB reserves the right to recall data with Service Provider.
- viii) Service Providers agrees to take prior approvals for making changes in the application, if any.
- ix) The Service Provider undertakes to comply with Regulatory and Statutory guidelines and requirements .
- x) The Service Provider shall ensure that cyber incidents are promptly reported to IPPB by the service provider without undue delay, so that the incident is reported by IPPB to Reserve Bank of India (RBI) within 6 hours of detection.

Notwithstanding what has been stated elsewhere in this Agreement, in the event the Service Provider is unable to meet the obligations pursuant to this Agreement, the IPPB will have the option to invoke and forfeit the Performance Security/ Performance Bank Guarantee.

18. COMPLIANCE WITH LAWS:

- i) Each Party to this Agreement accepts that its individual conduct shall (to the extent applicable to it) at all times comply with all applicable laws, rules and regulations. For the avoidance of doubt, the obligations of the Parties to this Agreement are subject to their respective compliance with all applicable laws and regulations.
- ii) The Service Provider shall be responsible for ensuring that the Services comply with all applicable laws and regulations.
- iii) The Service Provider shall direct all enquiries from a Financial Regulator relating to this Agreement to the IPPB unless the enquiry is specifically addressed to the Service Provider by a Financial Regulator or otherwise agreed in writing by the parties.
- iv) Where the Service Provider is responsible for dealing with any enquiry by a Financial Regulator, in accordance with this clause, it shall, unless contrary to the Financial Regulator's directions, as soon as practicable notify and consult fully with the IPPB regarding such matters as are relevant to this Agreement prior to responding to the enquiry.
- v) Each Party shall provide to the other party all reasonable assistance in connection with any investigation by any Financial Regulator, the provision of any information relating to the Services reasonably requested by the other party or by the relevant Regulator which is in its possession or control, and shall use reasonable endeavours to ensure that its affiliates and agents do the same.

19. VICARIOUS LIABILITY

The Service Provider shall be the principal employer of the employees, trainers, agents, contractors, subcontractors, etc., engaged by it and shall be vicariously liable for all the acts, deeds, matters or things, whether the same is within the scope of power or outside the scope of power, vested under the contract. No right of any employment in the Bank shall accrue or arise, by virtue of engagement of employees, agents, contractors, subcontractors etc., by the Service Provider, for any assignment under the contract. All remuneration, claims, wages dues etc., of such employees, agents, trainers, contractors, sub-contractors etc., of the Service Provider shall be paid by the Service Provider alone and the IPPB shall not have any direct or indirect liability or obligation, to pay any charges, claims or

wages of any of the Service Provider's employees, agents, trainers, contractors, subcontractors etc. The Service Provider shall agree to hold the IPPB, its successors, assigns and administrators fully indemnified, and harmless against loss or liability, claims, actions or proceedings, if any, whatsoever nature that may arise or caused to the IPPB through the action of Service Provider's employees, agents, trainers, contractors, subcontractors, etc.

20. INDEMNITIES AND OTHER PROVISIONS

- A. The Service Provider (the "Indemnifying Party") undertakes to indemnify bank (the "Indemnified Party") from and against all Losses, damages, bodily injury, death or damage to tangible personal property arising in favour of any person, corporation or other entity (including the Indemnified Party) attributable to the Indemnifying Party's act, negligence or willful default in performance or non-performance under this Agreement. If the Indemnified Party notifies Indemnifying Party in writing of a third-party claim against Indemnified Party that any Service provided by the Indemnifying Party infringes a copyright, trade secret or patents incorporated in India of any third party, Indemnifying Party will defend such claim at its expense and will pay any costs or damages that may be finally awarded against Indemnified Party.

Further, Indemnifying Party will indemnify the Indemnified Party, if the loss to the indemnified party is caused by:

- i. an act or omission of the Service Provider, director/ authorized signatory, its agents, employees, or partners of the firm, proprietor etc. in the performance of the services provided by the Service Provider,
- ii. breach of any of the terms of this Request for Proposal or breach of any representation or warranty by the Service Provider,
- iii. use of the deliverables and or services provided by the Service Provider,
- iv. infringement of any patent, trademarks, copyrights etc. or such other statutory infringements in respect of all components provided to fulfil the scope of the work herein Service Provider shall further indemnify the Bank against any loss or damage to the Bank's premises or property, Bank's data, loss of life, etc., due to the acts of the Service Provider's employees, agents or representatives.

The Service Provider shall further indemnify the Bank against any loss or damage arising out of loss of data, claims of infringement of third-party copyright, patents, or other intellectual property rights, and third-party claims on the Bank deliverables at all points of time.

- B. The indemnities set out in point A above shall be subject to the following conditions:

- I. the Indemnified Party, as promptly as practicable, informs the Indemnifying Party in writing of the claim or proceedings and provides all relevant evidence, documentary or otherwise;
- II. the Indemnified Party shall, at the cost of the Indemnifying Party, give the Indemnifying Party all reasonable assistance in the defence of such claim including reasonable access to all relevant information, documentation and personnel provided that the Indemnified Party may, at its sole cost and expense, reasonably participate, through its attorneys or otherwise, in such defence;
- III. if the Indemnifying Party does not assume full control over the defence of a claim as provided in this Clause, the Indemnified Party may participate in such defence at its sole cost and expense, and the Indemnified Party will have the right to defend the claim in such manner as it may deem appropriate, and the cost and expense of the Indemnified Party will be recoverable from the Indemnifying Party;
- IV. the Indemnified Party shall not prejudice, pay or accept any proceedings or claim, or compromise any proceedings or claim, without the written consent of the Indemnifying Party, provided that such consent shall not be unreasonably withheld;
- v. all settlements of claims subject to indemnification under this Clause will

- a. be entered into only with the consent of the Indemnified Party, which consent will not be unreasonably withheld and include an unconditional release to the Indemnified Party from the claimant or plaintiff for all liability in respect of such claim; and
- b. include any appropriate confidentiality agreement prohibiting disclosure of the terms of such settlement;
- v. the Indemnified Party shall account to the Indemnifying Party for all awards, settlements, damages and costs (if any) finally awarded in favour of the Indemnified Party which are to be paid to it in connection with any such claim or proceedings;
- vi. the Indemnified Party shall take steps that the Indemnifying Party may reasonably require to mitigate or reduce its loss as a result of such a claim or proceedings;

21. INDEPENDENT SERVICE PROVIDER

This Agreement is on a principal-to-principal basis between the parties hereto. Nothing contained in this Agreement shall be construed or deemed to create any association, partnership or joint venture or employer-employee relationship or principal-agent relationship in any manner whatsoever between the parties. The Service Provider acknowledges that its rendering of services is solely within its own control, subject to the terms and conditions agreed upon and agrees not to hold itself out to be an employee, agent or servant of the IPPB or any subsidiary or affiliate thereof.

22. ASSIGNMENT:

The Service Provider shall not assign its obligations to perform under this Agreement to a third party, in whole or in part.

23. SUB-CONTRACTORS

Having regard to the nature of the present Contract for service, the Service Provider shall not assign or subcontract any of its obligations, duties, responsibilities contained in this Agreement to any agent, sub-agent or sub-contractor

24. INSPECTION AND RIGHT TO AUDIT

- i) The Service Provider shall provide unrestricted access to its premises and records being maintained with regard to the job being performed as per its contract with the IPPB, to the authorized personnel of the IPPB / its auditors (internal and external)/ any statutory / regulatory authority / authorized personnel from RBI to carry out any kind of process of audit including that of its operations and records related to IPPB and to obtain the copy of the any audit or review reports and findings made about the service provider in conjunction with the services performed under this agreement.
- ii) All the clauses specified under this clauses 21 shall be applicable and extended to any entity to which the Service Provider has outsourced. It shall be the responsibility of the Service Provider to ensure unrestricted access to the authorities/officials as mentioned above to the places where such services are outsourced, for inspection and verification. In accessing Service Provider's premises, the IPPB shall however comply with any and all rules, regulations, policies and procedures relating to the access, entry, safety and security of Service Provider's premises, subject to acceptance by the IPPB and a copy of the rules & regulations be provided to the IPPB prior to visit. In addition, the IPPB shall keep confidential any information in the possession or custody of Service Provider and shall not disturb or prevent Service Provider's performance of activity.
- iii) The Service Provider shall allow IPPB, Reserve Bank of India & other regulators and statutory authorities to access the documents, records of transaction or any other information given to, stored or processed by the Service Provider relating to this agreement, within a reasonable time failing which Service Provider will be liable to pay any charges/ penalty levied by RBI. The Service Provider shall allow the Reserve Bank of India to conduct audits or inspection of its Books and account with regard to this agreement by one or more of RBI officers or employees or other persons duly authorized by RBI.

- iv) Bank may also rely upon globally recognized third-party certifications made available by the service provider in lieu of conducting independent audits.

25. STATUTORY/ LEGAL COMPLIANCES

The Service Provider agrees, undertakes and confirms absolutely, irrevocably, unconditionally that the entire obligation with regard to: (i) Payment of minimum wages; (ii) Payment of bonus; (iii) Payment of gratuity; and (iv) Any other statutory remittances, which may be applicable from time to time to the resources engaged by the Service Provider shall be principally with the Service Provider and the Service Provider shall also be liable for payment to the resources engaged by him/them any revision in aforesaid laws affected by appropriate Government and liability and duty of the Bank shall be limited only to the extent of reimbursement of the bills properly raised and not otherwise. If any liability, obligation, burden, claim or cost are suffered or incurred by IPPB on account of breach by the Service Provider of the provisions of this clause, the Service Provider shall forthwith reimburse the same to the Bank without any demur or protest whatsoever.

The Service Provider hereby indemnifies IPPB against any harm or cost or claim incurred or suffered by the Bank due to breach of the Service Provider in terms of the obligations herein. The Service Provider will furnish proof of compliance of all labour laws requirements including obtaining licenses, filing of monthly/ quarterly and annual returns and any other statutory requirement within 15 days from the due date and furnish calculations and proof of payments made to all Government/Statutory Authorities under PF, ESIC, Labour Welfare Fund Act, Payment of Bonus Act, Minimum Wages Act, Payment of Wages Act, etc., within 15 days of the statutory time limit allowed under the respective Acts.

Notwithstanding anything contained in this AGREEMENT or in any other documents

- i) Under no circumstances shall IPPB be liable to the Service Provider for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of the Agreement, even if IPPB has been advised of the possibility of such damages, such as, but not limited to, loss of revenue or anticipated profits or lost business;
- ii) IPPB shall not have any liability whatsoever in case of any third party claims, demands, suit, actions or other proceedings against the Service Provider or its Personnel or any other person engaged by the Service Provider in the course of performance of the Service Provider's obligations under this AGREEMENT.

26. TAXES

The Service Provider, its directors and employees shall be solely liable for the payment of all taxes, duties, fines, penalties, etc., by whatever name called as may become due and payable under the local, State and / or central laws, rules and / or regulations as may be prevalent and as amended from time to time in relation to the Services rendered pursuant to this AGREEMENT.

Notwithstanding anything contained in this AGREEMENT, the Bank shall not be liable nor responsible for collection and/ or payment of any such taxes, duties, fines, penalties etc., by whatever name called, that are due and payable by the Service Provider under the local, State and / or central laws, rules and / or regulations as may be prevalent and as amended from time to time.

27. MISCELLANEOUS

- A. The Service Provider shall ensure that all the relevant licenses/ registrations/ permissions which may be required for providing the services are valid during the entire period of the contract; failing to which shall attract the appropriate penalties. The documents relevant in this regard shall be provided by the Service Provider on demand.
- B. The Bank shall have the right, within reason, to have any personnel removed who is considered to be undesirable with proper reasoning or otherwise and similarly the Service Provider reserves the right to remove any personnel with prior intimation to the Bank in case of any emergencies.

C. For all intents and purposes, the Service Provider shall be the "Employer" within the meaning of different Rules & Acts in respect of manpower so deployed. The persons deployed by the Service Provider shall not have any claim whatsoever like employer and employee relationship against IPPB.

28. PENALTIES

The penalties shall be as per Schedule-B to this agreement.

29. PROPRIETARY RIGHTS:

- i) All deliverables and the intellectual property rights (whether registered or not) relating to the said services provided under this Agreement shall be the proprietary of IPPB and shall be subject to the confidentiality provisions of this Agreement.
- ii) This Agreement shall in no way be construed to grant any right, license or authorization nor shall it any way be deemed to create any interests, charge or lien in favour of the service provider to use the computer programs, software, and/ or related documentation used or supplied by IPPB for any purpose except as permitted in this Agreement.
- iii) The IPPB master file as well as the transaction data file and related files, reports, studies supplied by the IPPB under this Agreement are subject to the proprietary rights of the IPPB, as well as the Confidentiality provision of this Agreement.

30. SUCCESSORS:

This Agreement binds the executors, administrators, successors and permitted assigns of the Service Provider with respect to all covenants herein.

31. NON-EXCLUSIVE AGREEMENT:

This Agreement is on non-exclusive basis and the Service Provider shall not have any exclusive right to provide the Services to the IPPB. The IPPB shall be free to engage any other Service Provider/s or may entrust services similar to the Services or any part thereof to any person/s or company or firm etc.

32. RELATIONSHIP OF THE PARTIES:

This Agreement, which is a Contract for Service, shall not constitute the appointment of either Party as the legal representative or agent of the other Party. No Party to this Agreement shall have any right or authority to assume, create or incur any liability or any obligation of any kind, express or implied, against or in the name of or on behalf of the other Party to this Agreement except as may be specifically provided in this Agreement, neither party shall assume or be responsible for any liability or obligation that arises from any act or omission to act of, the other party however or whenever arising.

33. TERMINATION OF CONTRACT & EXIT MANAGEMENT

- I. IPPB shall have the option to terminate this agreement any time or at any stage in the scenarios listed below.
 - a) Non- delivery of services or non-performance by the service provider
 - b) Service levels committed not met with by the service provider
 - c) Breach of obligations of the service provider or any act of the service provider amounting to financial loss, damages, penalties levied on IPPB by regulator or any statutory authority
 - d) Delay in performance of obligations by service provider
 - e) Discrepancies / deviations in the agreed processes and/or products
 - f) Failure of service provider to complete delivery of solution within the time as specified in the bid.
 - g) Violation of terms & conditions stipulated in this agreement.
 - h) Exceeding any of the threshold limit of Delay as per Service Level Agreement and Penalty
 - i) When Penalty as defined in Service Level Agreement reaches its maximum limit.
- II. It is clarified that the service provider shall not terminate this Agreement for convenience.

- III. IPPB reserves the right to recover any dues payable by the service provider from any amount outstanding to the credit of the service provider, including the pending bills and/or invoking & forfeiting the Bank Guarantee, if any, under this agreement.

IPPB may also terminate this agreement, on convenience, at its own discretion by providing prior written notice of 30 days to the Service Provider without assigning any reasons.

- A. Reverse transition mechanism would be activated in the event of cancellation of the contract or exit by the service provider prior to expiry of time for executing the contract. The service provider should perform a reverse transition mechanism to IPPB or its selected vendor.
- B. The reverse transition mechanism would facilitate an orderly transfer of services to IPPB or to an alternative 3rd party / vendor nominated by IPPB. Where IPPB elects to transfer the responsibility for service delivery to a number of vendors, IPPB will nominate a vendor who will be responsible for all dealings with the service provider regarding the delivery of the reverse transition services. The reverse transition services to be provided by the service provider shall include the following:
 - i. The service provider shall suitably and adequately train IPPB or its designated team for fully and effectively managing, operating the Services.
 - ii. The service provider shall provide adequate documentation thereof.
 - iii. The service provider shall jointly manage the support with IPPB or designated team for a reasonable period of time.
- C. Knowledge Transfer: The service provider shall provide such necessary information, documentation to IPPB or its designee, for the effective management and maintenance of the Deliverables under this contract.
- D. Service provider shall provide documentation (in English) in electronic form where available or otherwise a single hardcopy of all existing procedures, policies and programs required for supporting the Services.
- E. The service provider shall return confidential information and will sign off and acknowledge the return of such confidential information.
- F. The rates for availing services during reverse transition period would be the same as payable during the contract period for the respective services as contained and provided in this agreement.

During which the existing service provider would transfer all knowledge, know-how and other things necessary for IPPB or new bidder to take over and continue to manage the services. The service provider agrees that the reverse transition.

34. BLACKLISTING

If the Service Provider fails to perform the obligations as per this agreement and the RFP or his/her performance is found to be unsatisfactory by the Bank (India Post Payments Bank Ltd.), the Bank may at its sole discretion blacklist the Service Provider from participating in any offer by the Bank calling Bids, for a period of 2(two) years.

35. MATERIAL BREACH

In the event that either Party believes that the other Party is in Material Breach of its obligations under this Agreement, such aggrieved Party may terminate this Agreement upon giving a ____ (____) days' notice for curing the Material Breach to the other Party. In case the Material Breach continues, after the notice period, the IPPB or the Service Provider, as the case may be will have the option to terminate the Agreement. Any notice served pursuant to this Clause shall give reasonable details of the Material Breach, and the termination will become effective.

36. Liquidated Damages

Time is essence of the Contract and IPPB expects the Service Provider to complete the project implementation within the specified period as per bid document and provide services for complete the tenure of contract as specified in the this agreement & the RFP.

Except as otherwise provided under the SLA for any non-performance or delay in performance of obligations by the Service Provider, if the Service Provider fails to deliver any or all of the Deliverables or perform the Services within the time period(s) specified in the Contract, the Bank shall, without prejudice to its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to 0.5 percent of total Contract Price per week of delay from the payments to be made to the Service Provider, until actual delivery or performance, subject to maximum deduction of 10% of the total Contract Price and shall be entitled to invoke the guarantees furnished by the Service Provider to the extent of the liquidated damages applicable.

The liquidated damages are to be calculated on the Contract Price.

IPPB reserves the right to recover the liquidated damages from any payment to be made under this Contract. The liquidation damages represent a genuine pre-estimate of the loss or damage that IPPB may suffer due to delay or breach in performance of the obligations by the Service Provider.

It is clarified that the Liquidated Damages under this clause is irrespective of any penalty and the liquidated damages are over and above any penalty. The payment or deduction of such Liquidated Damages shall not relieve the Service Provider from his obligations to complete its obligations under this Agreement.

The parties agree that the Liquidated Damages set out hereunder are genuine pre- estimate of costs and losses likely to be incurred by IPPB due to a failure to comply with the terms of the agreement.

37. EFFECTS OF TERMINATION

In the event that the IPPB terminates this Agreement pursuant to failure on the part of the Service Provider to comply with the conditions as contained in this agreement and depending on the event of default or breach (including material breach), Performance Guarantee furnished by Service Provider shall be invoked/forfeited.

38. TERMINATION DUE TO BANKRUPTCY OF SERVICE PROVIDER, IF SERVICE PROVIDER FILES FOR DECLARATION OF BANKRUPTCY BEFORE THE APPROPRIATE FORUM.

The IPPB may serve written notice on the Service Provider at any time to terminate this Agreement with immediate effect in the event that the Service Provider reporting an apprehension of bankruptcy to the IPPB or its nominated agencies.

39. FRAUD BY SERVICE PROVIDERS PERSONNEL

The IPPB reserves its right to initiate criminal action against the agents/ employees of the Service Provider for fraud or misappropriation, besides stringent penalties Under the applicable laws, the IPPB may call for termination of this Agreement if the IPPB, in its sole discretion finds it necessary to do so. The Service Provider agrees that any decision of the IPPB in this respect shall be final and binding on the Service Provider.

40. BUSINESS CONTINUITY PLAN (BCP) REQUIREMENTS

The Service Provider should have proper standards & business continuity plan with required disaster recovery in place to achieve the stipulated uptime & achieve the required SLA's.

Regular testing of the Business Continuity to be done by service provider and the report of the same to be shared with IPPB.

41. FORCE MAJEURE

Neither party shall bear responsibility for the complete or partial non-performance of any of its obligations, if the non-performance results from such Force Majeure circumstances as Flood, Fire, Earth Quake and other acts of God as well as War, Military operation, blockade, Acts or Actions of State Authorities or any other circumstances beyond the parties control that have arisen during the term of this agreement.

42. INTELLECTUAL PROPERTY RIGHTS

The name, logo, design, and other intellectual property of IPPB is solely the property of the IPPB and in no case the Service Provider shall use the same, except for the purposes mentioned under this agreement and exclusively for the IPPB only.

43. CONFIDENTIALITY

"Confidential Information" shall mean and includes, without limitation, any and all information, data (including but not limited to customer data/information of IPPB), knowledge, and know-how, whether pertaining to commercial, technical, scientific, operational, administrative, financial, marketing or business affairs, or intellectual property, or otherwise (in whatever form and however communicated) relating, directly or indirectly, to the Provider, which the Provider or its employees, directors, officers, agents, consultants etc., would have disclosed or delivered prior to the date of this Agreement, or is disclosed or delivered after the date of this Agreement, to the Recipient or to any third party on the request of the Recipient, in writing, electronically, verbally, or through visual means, either with the disclaimer of confidentiality or not, or which the Recipient (or such third party) learns, obtains or derives, orally, through observation or through analysis, interpretations, compilations, studies, or evaluations of such information, data, knowledge, or know-how; for clarity, the information, data, knowledge, and know-how includes, without limitation, those in the nature of, or pertaining to, business plans, marketing and financial plans, strategy, projections, policy details, client details, various products, details regarding pricing, technical know-how etc. in respect of such products, and also the documents, registers, books, photographs, notes, renderings, journals, notebooks, computer programs, computer readable video, audio or sound files, and samples relating thereto;;

- i) The Service Provider recognises that during the Term of this Agreement, data, documents and/or information, including but not limited to Proprietary Information ("Confidential Information") will be procured and made available to it. Disclosure or usage of the data by any such recipient may constitute a breach of applicable Laws causing harm to the concerned customers of the IPPB. The Service Provider hereby consents to, not disclose any such Confidential Information to any Third Party and demonstrate utmost care, sensitivity and strict confidentiality with regard to any such Confidential Information. Any breach of this Clause will result in the IPPB and its nominees receiving a right to seek injunctive relief and damages without any limit, from the and/or also seek termination, in its sole discretion.
- ii) Each Party agrees as to any Confidential Information disclosed by a Party to this Agreement ("Discloser") to the other Party to this Agreement ("Recipient"):
 - a) To take such steps necessary to protect the Discloser's Confidential Information from unauthorised use, reproduction and disclosure as the Recipient takes in relation to its own Confidential Information of the same type, but in no event less than reasonable care.
 - b) To use such Confidential Information only for the purposes of this Agreement or as otherwise expressly permitted or expressly required by this Agreement or as otherwise permitted by the Discloser in writing.
 - c) Not, without the Discloser's prior written consent, to copy the Confidential Information or cause or allow it to be copied, directly or indirectly, in whole or in part, except as otherwise expressly provided in this Agreement, or as required about Recipient's use as permitted under this Clause, or as needed

for the purposes of this Agreement, provided that any proprietary legends and notices (whether of the Discloser or of a Third Party) are not removed or obscured.

- d) Not, without the Discloser's prior written consent, to disclose, transfer, publish or communicate the Confidential Information in any manner to any person except as permitted under this Agreement.
- e) Promptly destroy all Confidential Information in its possession, to the satisfaction of the Discloser, upon fulfilment of its obligations under this Agreement.
- iii) The restrictions of this clause shall not apply to Confidential Information that:
 - a) is or becomes generally available to the any Third Party through no breach of this Clause by the Recipient;
 - b) was in the Recipient's possession free of any obligation of confidence prior to the time of receipt of it by the Recipient hereunder, provided the same has been rightfully obtained;
 - c) is developed by the Recipient independently of any of Discloser's Confidential Information;
 - d) is rightfully obtained by the Recipient from Third Parties authorised at that time to make such disclosure without restriction;
 - e) is identified in writing by the Discloser as no longer proprietary or confidential;
 - f) is required to be disclosed by Law, regulation or order of a court or any other regulatory authority in India or to be furnished to the Parliament and/or its Committees, provided that the Recipient gives prompt written notice to the Discloser of such legal and regulatory requirement to disclose so as to allow the Discloser reasonable opportunity to contest such disclosure.
- iv) To the extent that such disclosure is required for the purposes of this Agreement, either Party may disclose Confidential Information, with the prior written consent of the other Party, which shall not be unreasonably withheld, to:
 - a. its employees, agents and independent contractors and to any of its Affiliates and their respective independent contractors or employees but all of them should in turn be bound to maintain the confidentiality referred to herein on their part; and
 - b. its professional advisors and auditors, who require access for the purposes of this Agreement, whom the relevant Party has informed of its obligations under this Clause and in respect of whom the relevant Party has used commercially reasonable efforts to ensure that they are contractually obliged to keep such Confidential Information confidential on terms substantially the same as set forth in this Article. Either Party may also disclose Confidential Information to any entity with the other Party's prior written consent.
- v) The provisions of this clause 40 shall survive the expiration or any earlier termination of this Agreement.
- vi) Confidential Information shall be and remain the property of the Discloser and nothing in this clause shall be construed to grant either Party any right or license with respect to the other Party's Confidential Information otherwise than as is expressly set out in this Agreement.
- vii) Subject as otherwise expressly provided in this Agreement all Confidential Information in tangible or electronic form under the control of the Recipient shall either be destroyed, erased or returned to the Discloser promptly upon the earlier of: (i) the written request of the Discloser, or, (ii) termination or expiry of this Agreement.
- viii) Both Parties agree that monetary damages would not be a sufficient remedy for any breach of this Clause by the other Party and that the IPPB and Service Provider, as appropriate, shall be entitled to equitable relief, including injunction and specific performance as a remedy for any such breach. Such remedies shall not be deemed to be the exclusive remedies for a breach by a Party of this Clause, but shall be in addition to all other remedies available at Law or equity to the damaged Party.

44. PERSONNEL

- i) Personnel assigned by the Service Provider to perform the Services shall be employees/consultants of the Service Provider, and under no circumstances will such personnel be considered employees of IPPB.

The Service Provider shall have the sole responsibility for supervision and control of its personnel and for payment of such personnel's entire compensation, including salary, withholding of income taxes and other applicable taxes, worker's compensation, employee and disability benefits and the like and shall be responsible for all IPPB obligations under all applicable laws.

- ii) Each Party shall be responsible for the performance of all its obligations under this Agreement and shall be liable for the acts and omissions of its employees and agents in connection therewith.

45. CHANGE IN CONSTITUTION

Prior intimation to IPPB shall be required by the Service Provider for any change in the Partner or its constitution.

46. LIMITATION OF LIABILITY

Except in cases of criminal negligence or willful misconduct, the aggregate liability of the Service Provider to IPPB, whether under the contract, in tort or otherwise, shall be limited to the total Contract Price. Provided that this limitation shall not apply to any obligation of the Service Provider, to indemnify the Bank under clause 17 or due to breach of Intellectual Property Rights under clause 26 & 39 or breach of confidentiality obligations under clause 40 .

47. PERFORMANCE MONITORING

The performance of the service provider shall be continuous monitored and assessed at a regular interval of Quarterly.

In case of any deficiency in services by the service provider or non-adherence to the timelines as mentioned under this agreement, IPPB may provide a cure period of 30 days to the service provider to improve its services or adhere to the timelines. In case, there is no improvement on the part of Service Provider, then IPPB may terminate this agreement at its own discretion.

48. TRANSITION REQUIREMENT

In the event of failure of the Service Provider to render the Services or in the event of termination of agreement or expiry of term or otherwise, without prejudice to any other right, IPPB may at its sole discretion make alternate arrangement for getting the Services contracted with another vendor/ service provider. In such case, IPPB shall give prior notice to the existing Service Provider. The existing Service Provider shall continue to provide services as per the terms of contract until a New Service Provider or New Vendor completely takes over the work. During the transition phase, the existing Service Provider shall render all reasonable assistance to the new Service Provider within such period prescribed by IPPB, at no extra cost to IPPB, for ensuring smooth switch over and continuity of services. If existing Service Provider breaches this obligation under clause 45, it shall be liable for paying a penalty of 5% of the contract value on demand to IPPB, which may be settled from the payment of invoices for the contracted period or by forfeiture of Performance Bank Guarantee/ Performance security.

49. NOTICES

- i) Any notice or other document, which may be given by either Party under this Agreement to the other Party ("Notice"), shall be given in writing in person or by registered post or by facsimile transmission.
- ii) In relation to a notice given under this Agreement, any such notice or other document shall be addressed to the other Party's principal or registered office address set forth below-

If to IPPB;

Name:.....

Designation:

**India Post Payments Bank Ltd., , 2nd Floor,Speed Post Centre, Market Road, Bhai Veer Singh Marg,
New Delhi-110001**

Telephone no.- _____,

E-Mail ID: _____

If to Service Provider;

Name:.....

Designation:

Address:.....

Telephone:

Fax:

Email Id: _____

- iii) Any notice or other document shall be deemed to have been given to the other Party (or, if relevant, its relevant associated company) when delivered (if delivered in person) if delivered between the hours of 10.00 am and 5.00 pm on a working day at the address of the other Party set forth above or if sent by fax, provided the copy fax is accompanied by a confirmation of transmission, or on the next working day thereafter if delivered outside such hours, and 7 days from the date of posting (if by letter), or through e-mail with due acknowledgement of its receipt.
- iv) Either Party to this Agreement may change its representative, address, telephone number, facsimile number and nominated email for notification purposes by giving the other Party reasonable prior written notice of the new information and its effective date.

50. ENTIRE AGREEMENT

This Agreement along with Schedules constitutes the entire agreement between the parties hereto with respect to the subject matter of this Agreement and supersedes all prior agreements and undertakings, written or oral, with respect to the subject matter hereof except as otherwise expressly provided herein.

51. ORDER CANCELLATION

IPPB reserves its right to cancel the order (fully or partially) in the event of work not done per the mutually agreed terms & conditions. In addition to the cancellation of the purchase order, the IPPB also reserves the right to appropriate the damages from the performance bank guarantee (PBG) / Performance security given by the Service Provider and/or foreclose the bank guarantee for damages / losses incurred by IPPB. The Service Provider shall continue to fulfil the contract to the extent not terminated.

52. Change in management and the key persons

Change in management and the key persons monitoring the outsourcing arrangements are to be timely informed to Bank by Service Provider to ensure continuity of operations. Further, the deployed management/ resources should be in line with the expertise requirements to carry out the activities and as per Bid terms & conditions.

53. COSTS

Each of the parties shall pay its own legal, accountancy and other costs and expenses incurred in relation to the negotiation, preparation and execution of this Agreement.

54. COUNTERPARTS

This Agreement may be executed in any number of counterparts and by the different parties on separate counterparts, each of which when so executed and delivered shall be an original, but all of which shall together constitute one and the same instrument. The English language text of this Agreement shall prevail over any translation thereof.

55. VARIATIONS AND FURTHER ASSURANCE

- i) No amendment, variation or other change to this Agreement shall be valid unless made in writing and signed by the duly authorised representatives of the Parties to this Agreement.
- ii) Each Party to this Agreement agrees to enter into or execute, without limitation, whatever other agreement, document, consent and waiver and to do all other things which shall or may be reasonably required to complete and deliver the obligations set out in this Agreement.

56. SEVERABILITY AND WAIVER

- i) No waiver of any provision of this Agreement or consent to any departure from it by any party shall be effective unless it is in writing. A waiver or consent shall be effective only for the purpose for which it is given. No default or delay on the part of any Party in exercising any rights, powers or privileges operates a waiver of any right, nor does a single or partial exercise of a right preclude any exercise of other rights, powers or privileges
- ii) Failure or delays on the part of any party in exercising any right, power or privilege under this Agreement and no course of dealing between the Parties shall operate as a waiver thereof; nor shall any single or partial exercise of any right, power or privilege hereunder shall not preclude any other or further exercise thereof or the exercise of any other right, power and privilege hereunder. The rights, powers and remedies herein expressly provided are cumulative and not exclusive of any rights, powers or remedies, which the parties would otherwise have. No notice to or further notice or demand in similar or other circumstances or constitute a waiver of the rights of any of the other parties to any other or further action in any circumstances without notice or demand.
- iii) If any provision of this Agreement, or any part thereof, shall be found by any court or administrative body of competent jurisdiction to be illegal, invalid or unenforceable the illegality, invalidity or unenforceability of such provision or part provision shall not affect the other provisions of this Agreement and the remainder of the provisions in question which shall remain in full force and effect.
- iv) No failure to exercise or enforce and no delay in exercising or enforcing on the part of either Party to this Agreement of any right, remedy or provision of this Agreement shall operate as a waiver of such right, remedy or provision in any future application nor shall any single or partial exercise or enforcement of any right, remedy or provision preclude any other or further exercise or enforcement of such right, remedy or provision or the exercise or enforcement of any other right, remedy or provision. No waiver of any of the terms or conditions hereof shall be valid or binding unless made in writing and duly executed by both the parties.

57. SURVIVAL

Cancellation, expiration or earlier termination of the Agreement (i) shall not relieve any Party of any obligations here under which expressly or by implication survive termination hereof; and (ii) except as otherwise provided in any provision of the Agreement expressly limiting the liability of either Party, shall not relieve either Party of any obligations or liabilities for (a) loss or damage to the other Party arising out of or caused by acts or omissions of such Party prior to the effectiveness of such termination or arising out of such termination; and (b) warranties, remedies, promises of indemnity and confidentiality.

58. PUBLICITY AND BRANDING

- i) The Service Provider shall not, without the prior written consent of the IPPB, which shall not be unreasonably withheld or delayed, make any press announcements or publicise this Agreement or any other contract with the IPPB or their respective contents or the business practices of the Parties in any way; or use the IPPB name or brand in any promotion or marketing or announcement of orders.

- ii) Each party acknowledges to the other that nothing in this Agreement either expressly or by implication constitutes an endorsement of any products or services of the other party and each party agrees not to conduct itself in such a way as to imply or express any such approval or endorsement.

59. ARRANGEMENT BETWEEN SERVICE PROVIDER & OEM

The service provider shall have back-to-back arrangement with the OEM for fulfilling the obligations under this agreement.

60. PRECEDENCE OF DOCUMENTS

If there is any inconsistency between the terms of this agreement & the RFP then, the terms of the RFP will prevail to the extent of any inconsistency.

61. APPLICABLE LAW AND JURISDICTION OF COURT

This agreement shall be governed in accordance with the Laws of India for the time being in force and will be subject to the exclusive jurisdiction of Courts at Delhi (with the exclusion of all other Courts).

62. PREVENTION OF CORRUPTION

- i) The Service Provider shall not:
- I. offer or agree to give any person working for or engaged by the IPPB any gift or other consideration, which could act as an inducement or a reward for any act or failure to act connected to this Agreement, or any other agreement between the Service Provider and the IPPB or any Governmental Authority; nor
 - II. enter into this Agreement if it has knowledge that, in connection with it, any money has been, or will be, paid to any person working for or engaged by the IPPB or any other Governmental Authority by or for the Service Provider, or that an agreement has been reached to that effect, unless details of any such arrangement have been disclosed in writing to the IPPB before execution of this Agreement.
- ii) If the Service Provider (including any employee, Partner, or agent, in all cases whether or not acting with the Service Provider's knowledge) breaches the above provisions of Clause 59(i) ,I & II and/or the Prevention of Corruption Act, 1988 in relation to this Agreement or any other contract with the IPPB, the IPPB may terminate this Agreement by written notice with immediate effect.
- iii) Any termination under the above clause 59 (i) & (ii) shall be without prejudice to any right or remedy that has already accrued, or subsequently accrues, to the IPPB.

Notwithstanding, what has been stated above, for the purpose of interpretation of the responsibilities of the Service Provider under this Agreement, all the terms & conditions of this agreement shall prevail and shall be binding upon the Service Provider.

IN WITNESS WHEREOF the Parties have by duly authorised representatives set their respective hands and seal on the date first above written in the presence of:

IPPB
Signed
For and on behalf of the
India Post Payments Bank Limited
.....

SERVICE PROVIDER
Signed
For and on behalf of the

By:(signature)_

(Name & Designation)_

By: (signature)

(Name & Designation)_

WITNESSES:

1.

(Name, Designation, Organisation, and Signature)

2.

(Name, Designation, Organisation, and Signature)

3.17 Annexure 16 - Declaration on absence of Conflict of Interest

(To be submitted on the Letterhead of the Bidder)

(Place), (Date)

To,

The MD & CEO,

India Post Payments Bank

, 2nd Floor,

Speed Post Centre Building,

Bhai Veer Singh Marg,

Gole Market, New Delhi – 110 001.

Subject: Declaration regarding absence of conflict of interest in Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank

Dear Sir / Madam,

We do hereby undertake that there is absence of, actual or potential conflict of interest on the part of the service provider or any prospective partner due to prior, current, or proposed contracts, engagements, or affiliations with Bank.

We also confirm that there are no potential elements (time frame for service delivery, resource, financial or other) that would adversely impact the ability of the service provider to complete requirements given in the RFP.

We undertake and agree to indemnify and hold Bank harmless against all claims, losses, damages, costs, expenses, proceeding fees of legal advisors (on a reimbursement basis) and fees of other professionals incurred by Bank and/or its representatives, if any such conflict arises later.

Dated this _____ day of _____ 2023.

Yours sincerely,

On behalf of [Bidder's Name]:

Authorized Signatory Name:

Title of Signatory:

Name of Firm:

Address:

Seal / Stamp of Bidder:

3.18 Annexure 17 - Technical and Functional Requirements

To,

The MD & CEO,

India Post Payments Bank

, 2nd Floor,

Speed Post Centre Building,

Bhai Veer Singh Marg,

Gole Market, New Delhi – 110 001.

Sir,

REG.: Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

S No.	Scope of Work	Compliance (Yes/No)
1	The Bidder will have to Supply, Install, Implement, customize software solution to integrate with NCCR Portal for Realtime Reporting of data as per the scope mentioned in the RFP.	
2	Solution will be available in high availability as specified, and Services which includes, development, integration, implementation, customization, operations, monitoring, management, audit compliance, training, and knowledge transfer in respect of complete solutions.	
3	The proposed solution has the facility to take requests in multiple formats(ISO, json, xml, delimited etc) from outside portal and convert the same in the bank's different system understandable format (json, XML, ISO, delimited etc)	
4	The proposed solution has the facility to report data requested by any 3rd party system in real time or near real time.	
5	The Solution has capability to fetch data from various systems simultaneously, process the received data and send back response to the respective portal.	
6	Solution has capability to send various types of requests such as Customer Inquiry, Balance Inquiry, Mini Statement Inquiry, Full Statement Inquiry, Lien Marking, Freeze Marking, Transfer Transaction or any other request as required by bank on account in CBS.	
7	The Solution has the capability to perform basic calculations if needed any on the data received from CBS or any other systems through inquiry calls.	

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- 8 The Solution has the capability of providing a dashboard to the users to see the reported transactions and take necessary actions against the same.
- 9 The Solution has the capability of integrating with different channels of bank and provide all the necessary details i.e 360-degree view of transaction like beneficiary details, ATM/POS'S location, Ip address, branch id and etc based on transaction mode.
- 10 The solution has the capability to generate and send Acknowledgement number for a request received from any portal if needed
- 11 The solution has the capability of employing measures such as authentication, authorization, encryption, and monitoring to secure API endpoints and prevent unauthorized access
- 12 Solution has the capability to define firewall policies to accommodate the specific traffic patterns and communication needs of APIs, allowing legitimate API traffic while blocking malicious activity
- 13 The solution has the capability to authenticate an API request with the credentials received from 3rd party systems and credentials stored in bank's database.
- 14 Solution deployed by the selected service provider is capable and scalable of meeting Bank's current and incremental business volumes, peak time volumes, Setup, Implementation, Migration, etc.

Technical

- 1 Bidder has to provide Technical Specification Documents (TSD) including but not limited to APIs details, request/ response format, technical flow, Network Diagram, architectures, error codes, data base details tables, fields etc of all the modules/ services. These document needs to be updated as and when new change gets implemented and need to be reviewed on half yearly basis.
- 2 Bidders need to provide solution in hosted model, procurement and deployment of required software, application, etc. will be the responsibility of the selected service provider. This IT infrastructure will be deployed at Bank's Data Centre DC(Mumbai) & DR(Bangalore).
- 3 Bank at its sole discretion reserve the right to shift the equipment at DC/DR to suitable location depending upon the need and the vendor will arrange to shift the equipment installed and commission the same at the shifted locations. The transportation cost shall be borne by the bank. Obtaining of road permits, form 32 and other security forms etc will be the sole responsibility of the vendor. The vendor to arrange onsite support in case of shifting of equipment.
- 4 Bidder to ensure that DR drill activities for all systems/ applications are performed as per regulatory guidelines/requirement of bank and submit reports to bank.
- 5 Monitor Daily, Weekly, Monthly system's/ application's health check-ups and report to bank also.

- 6 The RTO (Recovery Time objective) and RPO (Recovery Point Objective) should be as per the standards defined by the bank/demanded by the ecosystem.
- 7 Bidder to ensure that application provided for incident management should have the capability to capture the raw data details for the requests such as timings, priority, comments for any issues. Self-declaration for the same need to be submitted for the same while submitting the bid.
- 8 Bidder has to ensure regular patching and updates of all IT Infrastructure and Application items as per bank's policy. Monthly dashboard must be provided for the same to the bank.
- 9 Bidder must have sufficiently trained manpower to provide Technical Support for seamless operations of Solutions/ Systems at DC and DR locations.
- 10 Bidder has to provide 24 x 7 production support and promptly do the incident reporting as and when any incident, failover, declines. In case of any issue/ downtime from bank side, bidder to provide necessary support/ logs/ clarifications/ Audio and Video Call support (if required) for troubleshooting/ fix.
- 11 Complete Audit Trail & Audit Logs (All system & user activities) should be available on request with the bank. Also Access to system should be through secure session. Further access to system should be role based & configurable and SOP's preparation for granting and revoking access to the application.
- 12 Bidder will be responsible for patching/ upgrade of Operating System (OS)/ firmware/ applications etc.
- 13 With the provided projected volumes, the CPU Utilization at any time not to exceed 70% at any of the sites (Production, Disaster Recovery, UAT, Pre-Prod etc.). If the threshold breaches at any of the site (production, Disaster Recovery, UAT, Pre-Prod etc.) at any point of time, the vendor will immediately inform to the bank.
- 14 The solution should be capable of handling the existing and future volume of transactions as mentioned in RFP document by ensuring the uptime system.

Compliance

- 1 Solution should be compliant to all existing regulatory guidelines GOI/IBA/RBI/NPCI etc.
- 2 Solution should adhere to compliance of Personal data protection.
- 3 Compliance to standards like ISO 27001:2013
- 4 The proposed solution should have an open architecture and proven platform.
- 5 The system architecture should be modular, with load balancing and fault tolerance for data recovery, hardware failure and site failure with built in redundancy. The solution should also allow 100% scalability, by adding capacity to the current environment (vertical and horizontal)

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- 6 Should be up and running in DR environment in less than 30 minutes if the primary site fails.
 - 7 System should automatically generate Daily transaction reports based on the scheduled time and should have the capability to export the same in different formats but not limited to CSV, xls/xlsx, xml, text, etc.

Security Control

- 1 Solution should support configurable security controls over specific users or group of users
- 2 Data access should be controlled based on individual profiles/roles.
- 3 Solution should provide for configuring privileges at user level
- 4 Should provide facility for recording time-in, time-out of user. Audit logs should be maintained and made available for the Bank in case of need.
- 5 Solution should provide adequate reports for these controls and should provide report/alert on unauthorized access.
- 6 Bidder should provide adequate security for data in motion and data at rest

Operational Security

- 1 Mode to access the system should be through passwords to ensure that only authorized users gain access
- 2 Solution should provide for configuration of complex passwords using algorithms and special characters
- 3 Option to set password expiry in the system for forcing the user to change it once it expires
- 4 Password history is to be maintained and validated so that the same password is not continued by the user
- 5 The user rights on the system should be definable so that a user can perform only those tasks, which are assigned to them.
- 6 It should be capable of maintaining audit logs of each activity on the system.
- 7 Audit Trail of all changes made in the application, system Parameter, user role changes etc. with details like username, IP address, date and time, module name etc. System should maintain a record of the users who have accessed the system, resources used, and actions performed along with security violations.
- 8 Type and nature of security parameter should be configurable over & above what has been stated above.

Incident Management Services

- 1 The selected Bidder shall establish a robust Incident Management process including:
- 2 24 x 7 support for incident management
- 3 System to provide for automatic escalation in case of a problem not getting resolved

Testing

- 1 The Bank proposes to conduct "User Acceptance Testing" (UAT) for the solution to ensure all the functionalities requested by the Bank are available and are functioning accurately.
- 2 UAT testing will be carried out at Bank premise. Bidder needs to provide the necessary support to bank till the period of testing is completed.
- 3 The bidder to confirm all the customizations that are required to "Go Live" as agreed upon and signed off by the Bank during DRG are completed and ready for testing.
- 4 The Bidder will be responsible for preparing detailed test cases including test data.
- 5 The Bidder will assist the Bank in conducting all the tests and analyzing/comparing the results. Bidder shall provide adequate full time resources conversant in all business areas, for trouble-shooting and resolving defects during the entire UAT process.
- 6 Any deviations/discrepancies/errors observed during the testing phase will be formally reported to the Bidder and the Bidder will have to resolve them immediately or within the UAT approach and guidelines formulated between the Bidder and the Bank. The resolution timelines will be completely aligned to the project timeline of this RFP.
- 7 The Bidder will be responsible for maintaining appropriate program change control and version control for all the modifications/ enhancements carried out during the implementation/testing phase.
- 8 The Bidder will be responsible for providing and updating system & user documentation as per the modifications.

MIS Reports and Decision-Making system

- 1 Weekly/Monthly/Quarterly reports as required by Bank.
- 2 Reports based on requirement of Bank, RBI and other statutory bodies.
- 3 The reporting tool should have user-friendly and powerful querying mechanism and help in effective data mining based on the Bank defined parameters, processing logic, rules and criteria

Bidder has to comply 100% for all the requirements unless mentioned as optional. Any non-compliance will lead to the straight disqualification of the bidder.

Date: _____

Place: _____

Signature of Authorized Signatory

Name of Signatory:

Designation:

Email ID:

Contact No.:

Seal of Company

3.19 Annexure 18 – Self Declaration for Compliance to RBI Master Direction on Outsourcing of IT Services

(To be submitted on Bidder's Letter Head)

To,

The MD & CEO,

India Post Payments Bank

, 2nd Floor,

Speed Post Centre Building,

Bhai Veer Singh Marg,

Gole Market, New Delhi – 110 001.

Sir,

REG.: Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

We, M/s_____ hereby state that we have gone through the RBI Master Circular: RBI/2023-24/102 DoS.CO.CSITEG/SEC.1/31.01.015/2023-24 dated 10.04.2023 and subsequent circular/guidelines regarding Master Direction on Outsourcing of Information Technology Services and we hereby state that we comply to all the directions and clauses as stated in the aforesaid circular. We along with the resources deployed by us and services provided by us, will also ensure compliance of all the clauses and directions of the aforesaid circular throughout the period of the contract.

Date: _____

Place: _____

Signature of Authorized Signatory

Name of Signatory:

Designation:

Email ID:

Contact No.:

Seal of Company

3.20 Annexure 19 – Escalation matrix

(To be submitted on Bidder and OEM Letter Head separately)
To,

The MD & CEO,
India Post Payments Bank
, 2nd Floor,
Speed Post Centre Building,
Bhai Veer Singh Marg,
Gole Market, New Delhi – 110 001.

Sir

REG.: Response to **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

We hereby submit the escalation matrix of our organization (M/s _____) for India Post Payments Bank related issues as following: -

Sl. No.	Escalation Level	Name	Designation	Contact No.	Email ID
1	Escalation Level 1				
2	Escalation Level 2				
3	Escalation Level 3				

Date: _____

Place: _____

Signature of Authorized Signatory

Name of Signatory:

Designation:

Email ID:

Contact No:

Seal of Company:

3.21 Annexure 20 – API Sample Formats

Fraud Call/ Vishing	Debit/Credit Card Fraud/Sim Swap fraud (Visa, Master Card, Debit Card, American Express, Rupay)
<pre>{ "acknowledgement_no":"31608230000001", "sub_category":"Fraud Call /Vishing", "instrument":{ "requestor":"I4C-MHA", "payer_bank":"Central Bank of India", "payer_bank_code":10, "mode_of_payment":"Debit/Credit", "payer_mobile_number":"919798868768", "payer_account_number":"998786878677", "state":"DELHI", "district":"SouthDelhi", "transaction_type": "", "incidents":[{ "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }, { "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }] } }</pre>	<pre>{ "acknowledgement_no":"31608230000001", "sub_category":"Debit/Credit Card Fraud/Sim Swap Fraud (VISA, Master Card, Debit Card, American Express, Rupay)", "instrument":{ "requestor":"I4C-MHA", "mode_of_payment":"Debit/Credit", "payer_bank":"Central Bank of India", "payer_bank_code":10, "payer_mobile_number":"919798868768", "payer_account_number":"998786878677", "state":"DELHI", "district":"South Delhi", "transaction_type":"Debit Card", "incidents":[{ "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }, { "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }] } }</pre>

E Wallet Related Fraud <pre>{ "acknowledgement_no":"31608230000001", "sub_category":"E-Wallet Related Fraud", "instrument":{ "requestor":"I4C-MHA", "payer_bank":"Central Bank of India", "payer_bank_code":10, "mode_of_payment":"Debit/Credit", "payer_mobile_number":"919798868768", "payer_account_number":"9987868786777", "state":"DELHI", "district":"South Delhi", "transaction_type":"", "incidents":[{ "amount":35.00, "rn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }, { "amount":35.00, "rn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }] } }</pre>	Debit/Credit Card Fraud (Credit Card) <pre>{ "acknowledgement_no":"31608230000001", "sub_category":"Debit/Credit Card Fraud", "instrument":{ "requestor":"I4C-MHA", "mode_of_payment":"Debit/Credit", "payer_bank":"Central Bank of India", "payer_bank_code":10, "payer_mobile_number":"919798868768", "payer_account_number":"9987868786777", "state":"DELHI", "district":"South Delhi", "transaction_type":"Credit Card", "incidents":[{ "first6digit":"123456", "last4digit":"6789", "cardlength":"17", "amount":35.00, "rn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }, { "first6digit":"123456", "last4digit":"6789", "cardlength":"17", "amount":35.00, "rn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }] } }</pre>

	<pre> } } </pre>
Internet Banking related fraud <pre> { "acknowledgement_no":"31608230000001", "sub_category":"Internet Banking Related Fraud", "instrument":{ "requestor":"I4C-MHA", "payer_bank":"Central Bank of India", "payer_bank_code":10, "mode_of_payment":"Debit/Credit", "payer_mobile_number":"919798868768", "payer_account_number":"998786878677", "state":"DELHI", "district":"South Delhi", "transaction_type":"", "incidents":[{ "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }, { "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }] } } </pre>	Business E Mail compromise/E Mail Takeover <pre> { "acknowledgement_no":"31608230000001", "sub_category":"Business Email Compromise/Email Takeover", "instrument":{ "requestor":"I4C-MHA", "payer_bank":"Central Bank of India", "payer_bank_code":10, "mode_of_payment":"Debit/Credit", "payer_mobile_number":"919798868768", "payer_account_number":"998786878677", "state":"DELHI", "district":"South Delhi", "transaction_type":"", "incidents":[{ "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00 }, { "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01-02", "transaction_time":"15:02", "disputed_amount":35.00 }] } } </pre>
Aadhaar Enabled Payments System (AEPS) Related frauds	UPI related frauds <pre> { </pre>

<pre>{ "acknowledgement_no":"31608230000001", "sub_category":"Aadhar Enabled Payment System (AEPS)", "instrument":{ "requestor":"I4C-MHA", "payer_bank":"Central Bank of India", "payer_bank_code":10, "mode_of_payment":"Debit/Credit", "payer_mobile_number":"91979886876 8", "payer_account_number":"998786878 6777", "state":"DELHI", "district":"South Delhi", "transaction_type":"", "wallet":"Phonepe", "incidents":[{ "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01- 02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }, { "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01- 02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }] } }</pre>	<pre>"acknowledgement_no":"31608230000001", "sub_category":"UPI Related Frauds", "instrument":{ "requestor":"I4C-MHA", "payer_bank":"Central Bank of India", "payer_bank_code":10, "mode_of_payment":"Debit/Credit", "payer_mobile_number":"91979886876 8", "payer_account_number":"998786878 6777", "state":"DELHI", "district":"South Delhi", "transaction_type":"", "wallet":"Phonepe", "incidents":[{ "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01- 02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }, { "amount":35.00, "rrn":"244444444444", "transaction_date":"2023-01- 02", "transaction_time":"15:02", "disputed_amount":35.00, "layer":0 }] }</pre>
---	---

Demat Depository Fraud

```
{
  "acknowledgement_no":"31608230000001",
  "sub_category":"Demat /Depository Fraud",
  "instrument":{
    "requestor":"I4C-MHA",
    "payer_bank":"Central Bank of India",
    "payer_bank_code":10,
    "mode_of_payment":"Debit/Credit",
    "payer_mobile_number":"919798868768",
    "payer_account_number":"9987868786777",
    "state":"DELHI",
    "district":"South Delhi",
    "transaction_type":"",
    "incidents":[
      {
        "amount":35.00,
        "rrn":"244444444444",
        "transaction_date":"2023-01-02",
        "transaction_time":"15:02",
        "disputed_amount":35.00,
        "layer":0
      },
      {
        "amount":35.00,
        "rrn":"244444444444",
        "transaction_date":"2023-01-02",
        "transaction_time":"15:02",
        "disputed_amount":35.00,
        "layer":0
      }
    ]
  }
}
```

3.22 Annexure 21 – Pre-Bid Query Format

Queries

Sr. No.	RFP Page No. #	RFP Clause No. #	RFP Clause Description #	Query/ Suggestion of the bidder	Banks Response (bidder Should not fill in this column)
1					
2					
3					
4					
5					
6					
7					
8					
9					

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.23 Annexure 22 - Authorisation Letter for Pre-bid meeting.

(To be submitted on company letterhead via email)

To,

The MD & CEO,

India Post Payments Bank

, 2nd Floor, Speed Post Centre Building,

Bhai Veer Singh Marg, Gole Market, New Delhi – 110 001.

Sir,

Sub: - Authorisation Letter – For attending Pre-bid Meeting **Request for Proposal (RFP) for Selection of service provider for Supply, Implementation, Customization of software solution to integrate with NCCR Portal for Realtime Reporting for India Post Payments Bank**

We, _____ (name of the company) hereby authorise the following executive from our company to attend the pre bid meeting of the subject RFP. The details of the authorised personnel is as under;

S. No.	Name	Designation	Mobile No	Email ID for VC invite

If the bank decides to conduct the Pre bid meeting via VC then kindly send the VC link for pre bid meeting on the above mentioned email id of the authorised personnel.

Yours faithfully,

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company

3.24 Annexure 23 – Undertaking under Rule 144 (xi)

Format for declaration (To be On Letter head of Bidder)

Restrictions on procurement from bidders from a country or countries, or a class of countries under Rule 144 (xi) of the General Financial Rules 2017

We certify as under:

1. We have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries, and solemnly certify that we fulfil all requirements in this regard and are eligible to be considered. We certify that:
2. We are not from such a country or, if from such a country, we are registered with the Competent Authority (copy of registration enclosed). and.
3. We shall not subcontract any work to a contractor from such countries unless such contractor is registered with the Competent Authority.

Dated this _____ day of _____

For and on behalf of M/s. _____

Address:

Name & Signature

In the capacity of (Duly Authorized to Sign the Bid)

Seal of the company